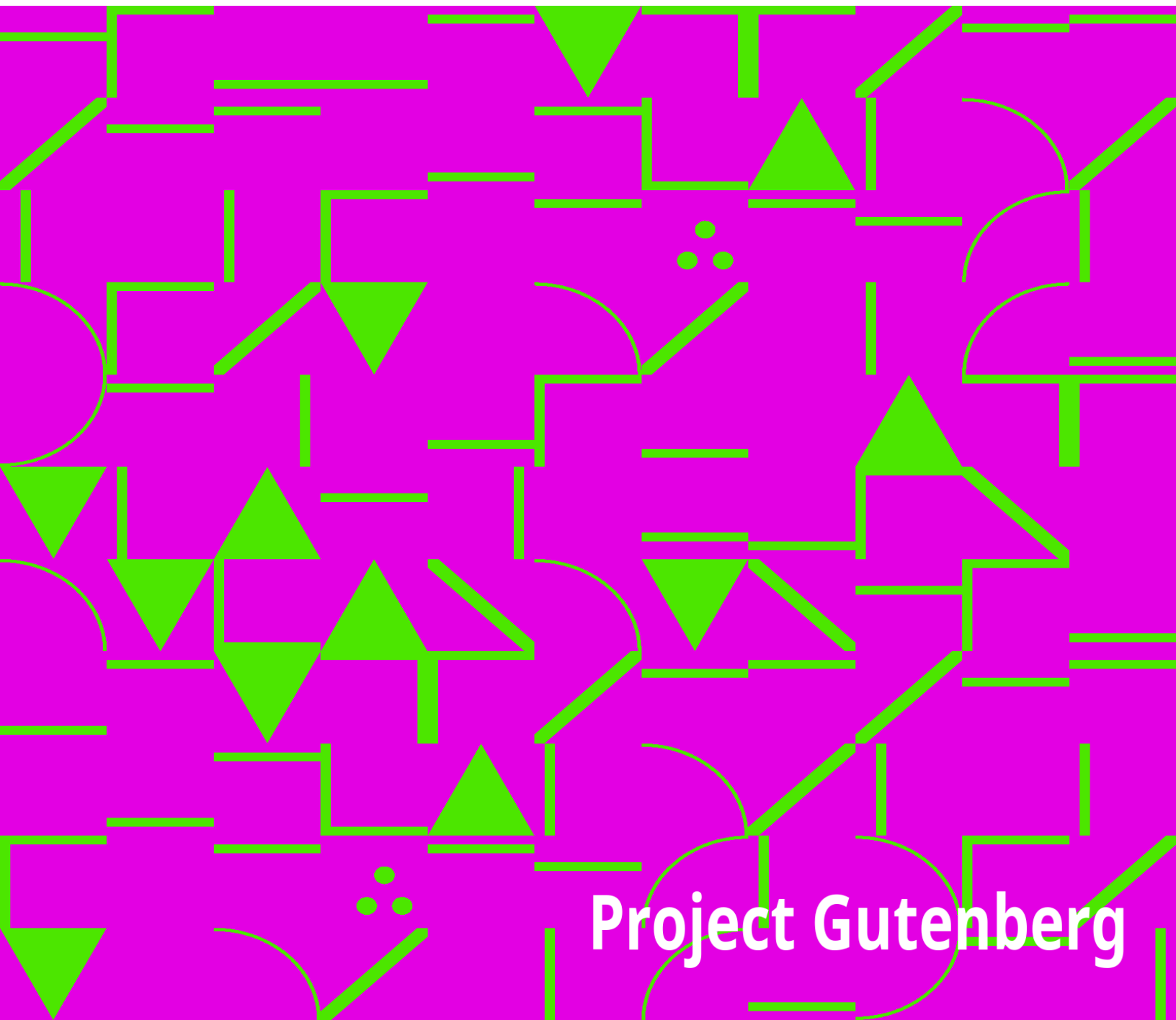


Correspondence Relating to Executions in Turkey for Apostacy from Islamism

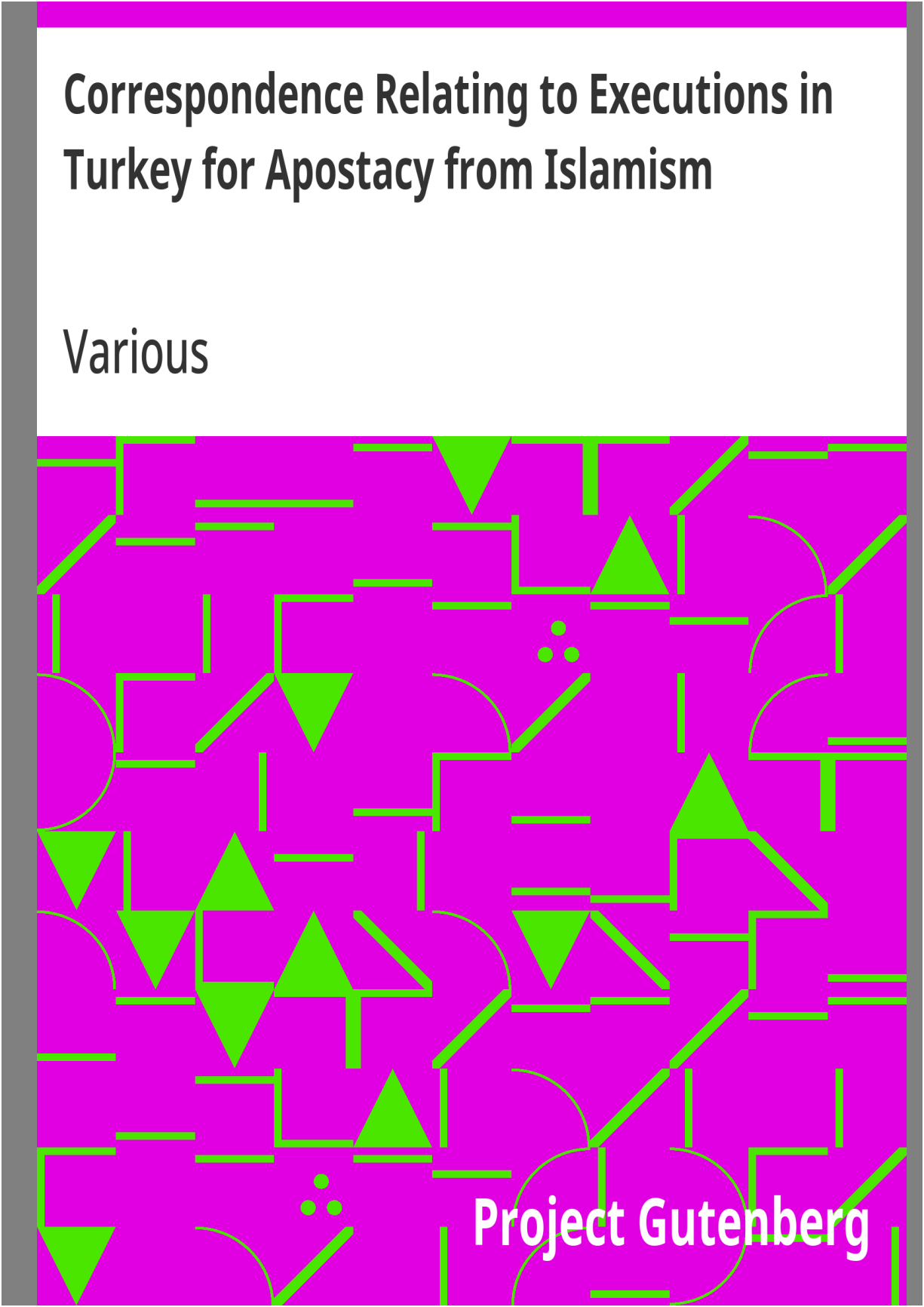
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CORRESPONDENCE RELATING TO EXECUTIONS IN TURKEY FOR
APOSTACY FROM ISLAMISM ***

Produced by John Bechard (JaBBechard@aol.com)

CORRESPONDENCE

RELATING TO

EXECUTIONS IN TURKEY

FOR

APOSTACY FROM ISLAMISM.

[stamped:] BIBLIOTHÈQUE DU PALAIS DE LA PAIX

Presented to the House of Lords, by Her Majesty's Command.

May, 1844.

LONDON:

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CORRESPONDENCE

RELATING TO

EXECUTIONS IN TURKEY

FOR

APOSTACY FROM ISLAMISM.

No. 1.

Sir Stratford Canning to the Earl of Aberdeen.—(Received September 20.)

(Extract.) Buyukderé, August 27, 1843.

Within the last few days an execution has taken place at Constantinople under circumstances which have occasioned much excitement and indignation among the Christian inhabitants. The sufferer was an Armenian youth of eighteen or twenty years, who having, under fear of punishment, declared himself a Turk, went to the Island of Syra, and returning, after an absence of some length, resumed his former religion. Apprehensive of the danger but resolved not to deny his real faith a second time, he kept out of sight till accident betrayed him to the police, and he was then thrown into prison. In spite of threats, promises, and blows, he there maintained his resolution, refused to save his life by a fresh disavowal of Christianity, and

was finally decapitated in one of the most frequented parts of the city with circumstances of great barbarity.

Inclosed herewith is a statement of the particulars drawn up by Mr. Alison.

It is not merely on grounds of humanity that I would draw your Lordship's attention to this incident: political considerations of serious importance are connected with it; and on this account, no less than from regard for the tears and entreaties of a distracted family, I exhausted my influence in vain endeavours to divert the Porte from its purpose. Every Member of the Council to whom I applied, returned the same answer, expressing a willingness to meet my wishes, and regretting the inexorable necessity of the law.

For my own part I do not believe that any such necessity exists. The determination of the Government to sacrifice the Armenian youth, in spite of my earnest solicitations, unless he recanted publicly, is part and parcel of that system of reaction which preceded my arrival here, against which I have constantly struggled, and which, notwithstanding the assurances given to me, and the efforts of its partisans to conceal it, is day by day gaining strength, to the despair of every enlightened Turkish statesman, to the prejudice of our relations with this country, and to the visible decline of those improvements which, in my humble judgment, can alone avert the dissolution of the Sultan's empire.

The law, which, in this instance, has torn a youth from the bosom of his family, and consigned him to an ignominious and cruel death, would apply with equal force to a subject of any Christian Power.

Such of my colleagues as I have consulted upon this subject appear to take a view of it similar to my own, I refer, in particular, to the Austrian,

French, Russian, and Prussian Ministers: each of them has told me that he intended to recommend the question to the serious consideration of his Government.

Since my arrival here one British and two French subjects have declared in favour of Mahomedanism, and much difficulty has been experienced in dealing with the individuals concerned. The British subject, a Maltese, returned to the Catholic faith a few days after he had declared himself a Turk, and he was privately conveyed out of this country. The Porte, on that occasion, evidently identified the change of allegiance with the change of creed, and not only would a trifling incident have sufficed to raise the question arising out of that principle between Her Majesty's Embassy and the Porte, but had the man been arrested after his recantation, I should perhaps have been reduced to the necessity of putting all to hazard in order to snatch him from the hands of the executioner.

The only* Articles relating to this matter in our Capitulations with the Porte are the sixty-first and seventy-first. The French have an Article of similar meaning in their capitulations, and by the Treaty of Kainardji between Russia and the Porte it was agreed that individuals who had changed their religion should be mutually exempted from the operation of the Article, which otherwise stipulates for the extradition of refugees and malefactors.

* Article LXI.—That if any Englishman should turn Turk, and it should be represented and proved that besides his own goods he has in his hands any property belonging to another person in England, such property shall be taken from him and delivered up to the Ambassador or Consul, that they may convey the same to the owner thereof.

Article LXXI.—That should any Englishman coming with merchandize turn Turk, and the goods so imported by him be proved to belong to

merchants of his own country, from whom he had taken them, the whole shall be detained, with the ready money, and delivered up to the Ambassador, in order to his transmitting the same to the right owners, without any of our judges or officers interposing any obstacle or hindrance thereto.

Under these impressions I trust that your Lordship will not think I have exceeded the bounds of prudence in stating confidentially, though without reserve, to the Grand Vizier the impressions made upon my mind by the recent execution. Couched as my message was in respectful and kindly terms, I hope it will operate as a salutary admonition. The interpreter's report of his Highness' reply is inclosed with this despatch.

Inclosure l in No. 1.

Case of the Armenian Avakim, son of Yagya, of the parish of Top Kapousee.

About a year and a half ago Avakim having had a drunken quarrel with some neighbours, was sentenced at the War Office to receive 500 bastinadoes.

Fear and intoxication induced him to become a Mussulman, and he was conducted on the spot to the Mehkemé where the name of Mehemet was given him.

Some days afterwards Avakim repented of what he had done, and fled to Syra, from whence he returned a few months ago.

About three months ago, while returning from his sister's house with a small bundle containing wearing apparel, he was recognized by the Kolaga of the quarter, Mustapha, and denounced at the War Office of having

renegaded from Islamism. He was then submitted to the most cruel punishment to compel him to re-abandon his original belief, and was even paraded through the streets with his hands tied behind his back as if for execution. Avakim, however, unintimidated by torture or the prospect of death, proclaimed aloud his firm belief in Christianity, and was led forth to suffer on Wednesday last amidst the execrations of the Ulema partisans.

Only one man, Taouk-Bazarli Ali, among the thirty armed police who conducted him, could be prevailed upon to strike the blow. Many of the Turks spat on him as they passed, and openly reviled the faith for which he had died. A Yafta, in the following terms, was affixed on the opposite shop:

"The Armenian shoemaker, Avakim, son of Yagya, having last year, in the beginning of Moharrem, while at an age of discretion, accepted Islamism, and received the name of Mehemet, some time afterwards renegaded, and having now obstinately persisted in refusing the proffer made to him by the law to re-become a Moslem, sentence of death was awarded unto him according to fetwa, and he has thereby suffered."

The first intelligence received in Pera of this occurrence was the appearance in the streets of the unfortunate lad's mother tearing her grey hair, and rushing distractedly from the scene of bloodshed. The poor old woman, when assured of her boy's fate, returned and sat in grief by the corpse, from which she was afterwards removed.

A petition of the Armenians for the corpse was rejected, and it was after three days exposure cast into the sea.

Constantinople, August 27, 1843.

Inclosure 2 in No. 1.

M. Pisani to Sir Stratford Canning.

Excellence, *Péra*, le 24 Août, 1843.

Conformément à vos ordres, j'ai vu le Grand Vizir, et je lui ai rendu, mot à mot, le message contenu dans votre instruction confidentielle en date d'hier, relativement au jeune Arménien qui vient d'être exécuté. Son Altesse a répondu de la manière suivante:

"Quant à moi, personnellement, j'ai en horreur même d'égorger une poule. Les exécutions, si fréquentes dans l'ancien système, sont très rares aujourd'hui. Mais dans le cas récent, je vous ai déjà dit, et je vous répète, que ni les Ministres, ni le Sultan, ne pouvaient absolument pas sauver la vie de l'Arménien. Les lois du Coran ne forcent personne de se faire Musulman; mais elles sont inexorables tant à l'égard du Musulman qui embrasse une autre religion, qu'à l'égard du non-Musulman qui, après avoir de son propre gré embrassé publiquement l'Islamisme, est convaincu d'y avoir renoncé. Nulle considération ne peut faire commuer la peine capitale à laquelle la loi le condamne sans miséricorde. Le seul, l'unique moyen d'échapper à la mort, c'est pour l'accusé de déclarer qu'il s'est fait de nouveau Musulman. C'est dans le seul but de sauver la vie à l'individu en question que nous avons, contre la lettre de la loi, qui exige que la sentence dans le cas dont il s'agit soit mise à exécution aussitôt qu'elle a été prononcée, que nous lui avons laissé quelques jours de temps pour y bien réfléchir, avec l'assurance que la déclaration voulue par la loi une fois faite, il serait mis en liberté, et qu'il pourrait partir de Constantinople; mais comme il a résisté à toutes les tentatives faites pour le persuader de recourir au seul moyen d'échapper à la mort, force fut à la fin d'obéir à la loi, sans quoi les Oulémas se soulevaient contre nous. L'exécution a dû, aux termes de la loi, être faite publiquement."

Voyant que le Grand Vizir n'avait rien dit par rapport aux observations de votre Excellence sur ce qui arriverait si un étranger, un Anglais par exemple, se trouvait dans des circonstances analogues, j'ai prié son Altesse de considérer et de faire considérer au Ministère Ottoman, dans quelle position la Porte se mettrait vis à vis du Gouvernement Anglais, si elle recourait à des violences. Le Grand Vizir a dit alors: "Je ne sais pas vraiment ce qu'un cas pareil exigerait s'il s'agissait d'un étranger; j'ignore ce que les lois disent à l'égard d'un Franc qui se trouverait compromis par les circonstances qui ont fait condamner à la mort l'Arménien, qui est un rayah."

Le Grand Vizir a fini par dire; "Faites mes complimens à Monsieur l'Ambassadeur, et dites lui que j'apprécie ses sentimens d'humanité et de bienveillance; mais que ce qui vient d'arriver était un mal tout à fait sans remède."

J'ai l'honneur. &c.,

(Signé) FRED. PISANI.

(Translation.)

Excellency, *Pera*, August 24, 1843.

In conformity with your orders I saw the Grand Vizier and communicated to him, word for word, the message contained in your confidential instruction of yesterday respecting the young Armenian who has just been executed. His Highness made answer to the following effect:—

"As regards myself personally, I have a horror of even putting a fowl to death. Executions, so frequent under the old system, are now of rare occurrence. But in the late instance, as I have already said to you, and again

repeat, positively neither the Ministers nor the Sultan could have saved the life of the Armenian. The laws of the Koran compel no man to become a Mussulman, but they are inexorable both as respects a Mussulman who embraces another religion, and as respects a person not a Mussulman, who, after having of his own accord publicly embraced Islamism, is convicted of having renounced that faith. No consideration can produce a commutation of the capital punishment to which the law condemns him without mercy. The only mode of escaping death is for the accused to declare that he has again become a Mussulman. It was only with a view to saving the life of the individual in question, that we—contrary to the letter of the law, which requires that the sentence in cases of this nature, should be executed as soon as pronounced—allowed him some days respite to think over the matter carefully, with the assurance that having once made the declaration required by law, he would be set at liberty and would be able to leave Constantinople; but inasmuch as he resisted all the attempts which were made to induce him to have recourse to the only means of escaping death, it finally became necessary to obey the law, otherwise the Ulemas would have risen against us. The execution, according to the terms of the law, was necessarily public."

Seeing that the Grand Vizier had said nothing with reference to your Excellency's observations as to what would occur if a foreigner, an Englishman for instance, were to be placed in similar circumstances, I begged His Highness to consider, and to direct the consideration of the Ottoman Ministry to the nature of the position in which the Porte would place itself as regards the British Government, were it to have recourse to violence. The Grand Vizier then said, "I really do not know what would become necessary in such a case if a foreigner were concerned; I am ignorant as to what is said in the law as regards a Frank who should be compromised by the circumstances which caused the Armenian, who was a Rayah, to be condemned to death."

The Grand Vizier concluded by saying, "Present my compliments to the Ambassador, and tell him that I appreciate his humane and well-intentioned sentiments, but that what has occurred was a misfortune for which there was no remedy whatever."

I have, &c.

(Signed) F. PISANI.

No. 2.

Lord Cowley to the Earl of Aberdeen.—(Received September 20.)

My Lord, *Paris, September 18, 1843.*

M. Guizot informed me this morning that he had received a communication from M. de Bourqueney, relative to a most unjustifiable act of the Turkish Government, in having, under circumstances of great cruelty, put to death an Armenian Turk who had embraced Christianity, and had refused to renounce that religion and resume the Ottoman faith.

M. Bourqueney having asked for instructions for his guidance in this matter, the Minister for Foreign Affairs sent him a protest which he is to present to the Ottoman Government on the behalf of the Government of France.

M. Guizot observed, that as the Great Powers of Europe were using their best endeavours to induce the Sultan's Christian subjects to live peaceably

under the Ottoman rule, they could not allow of such arbitrary acts of cruelty as that which had been perpetrated, and which was sufficient to rouse the whole of the Christian population against the Government. He understood, he said, that Sir Stratford Canning had asked for instructions from your Lordship in this matter, and that he trusted that they would be in a similar tenor to those he was about to send to M. de Bourqueney.

I have, &c.,

(Signed) COWLEY.

No. 3.

Chevalier Bunsen to the Earl of Aberdeen.—(Received September 29.)

Le Soussigné, Envoyé Extraordinaire et Ministre Plénipotentiaire de Sa Majesté le Roi de Prusse, a l'honneur de transmettre à son Excellence le Comte de Aberdeen, Principal Secrétaire d'Etat de Sa Majesté Britannique pour les Affaires Etrangères, copie d'une dépêche qu'il vient de recevoir, avec l'ordre d'en donner connaissance à sa Seigneurie.

En s'acquittant de cette commission, il profite, &c.

(Signé) BUNSEN.

Londres, le 28 Septembre, 1843.

(Translation.)

The Undersigned, Envoy Extraordinary and Minister Plenipotentiary from His Majesty the King of Prussia, has the honour to transmit to his Excellency the Earl of Aberdeen, Her Britannic Majesty's Principal Secretary of State for Foreign Affairs, a copy of a despatch which he has just received, with instructions to communicate it to his Lordship.

In executing this instruction, he avails himself, &c.

(Signed) BUNSEN.

London, September 28, 1843.

Inclosure 1 in No. 3.

Baron Bülow to Chevalier Bunsen.

Monsieur, *Berlin, ce 21 Septembre, 1843.*

Vos rapports au Roi jusqu'au No. 91 du 15 du courant nous sont parvenus et ont été placés sous les yeux de Sa Majesté.

Vous êtes sans doute déjà instruit, par la voie des journaux, des détails de l'exécution de l'Arménien Serkiz Papazoghlu, mis à mort dernièrement à Constantinople pour avoir renié la foi de Mahomet qu'il avait embrassée quelque temps avant. A la vérité, la lettre du Coran inflige la peine de mort à tous ceux qui abandonnent le Mahométisme, mais longtemps déjà l'usage avait adouci la rigueur d'une loi si peu en harmonie avec les préceptes de la civilisation, et depuis nombre d'années aucune exécution de ce genre n'avait eu lieu. Celle du malheureux Serkiz doit par conséquent être considérée comme un triste retour aux barbaries du fanatisme Musulman. Elle le doit d'autant plus que, d'un côté, l'énergique intercession de Sir Stratford Canning en faveur de la victime est restée infructueuse; et que, de l'autre, les autorités Turques, en conduisant Serkiz, quoique Arménien, en costume

Franc et la casquette sur la tête au supplice, semblent avoir voulu donner à ce sanglant spectacle le caractère d'un défi public porté par l'ancienne cruauté Mahométane à l'influence des moeurs Européennes et de la civilisation Chrétienne.

Partant de ce point de vue et regardant la catastrophe qui vient d'avoir lieu comme un symptôme de plus d'une tendance rétrograde et pour ainsi dire anti-Européenne dont, dans son propre intérêt, il importe de détourner le Gouvernement Ottoman, les Représentans des Cinq Grandes Puissances à Constantinople ont cru qu'un avertissement unanime, à la fois bienveillant et sérieux, que ces Puissances feraient parvenir à cet effet à la Sublime Porte, produirait sur elle une impression salutaire. Ils ont, en conséquence, et sur l'invitation spéciale de Sir Stratford Canning, sollicité de leurs Cours respectives les instructions nécessaires pour se porter à la démarche en question, et M. l'Ambassadeur d'Angleterre voulait en outre proposer à Lord Aberdeen de s'employer dans le même sens auprès des Cabinets de Berlin, de Vienne, de Paris, et de St. Pétersbourg.

Je n'ai pas encore reçu de communication à ce sujet de la part de Monsieur le Principal Secrétaire d'Etat, mais je me suis empressé de répondre par la dépêche dont je joins ici une copie, à celle que l'Envoyé du Roi à Constantinople a adressé à Sa Majesté sur cette affaire.

Veillez, Monsieur, en donner connaissance, ainsi que de la présente dépêche, à Lord Aberdeen, et exprimer de ma part à sa Seigneurie l'espoir d'être allé de cette manière au devant des ouvertures qu'elle serait peut-être dans le cas de me faire faire [sic] sur la démarche proposée par les cinq Représentans à Constantinople, mais mise, de préférence, sur le tapis par M. l'Ambassadeur d'Angleterre.

Recevez, &c.,

(Signé) BULOW.

(Translation.)

Sir, *Berlin, September 21, 1843.*

Your reports to the King, to No. 91 of the 15th instant, have been received and laid before His Majesty.

You are doubtless already acquainted, by means of the newspapers, with the details of the execution of the Armenian, Serkiz Papazoglou, lately put to death at Constantinople for having renounced the Mahomedan faith, which he had embraced some time before. In truth, the letter of the Koran inflicts the punishment of death upon all those who abandon Mahomedanism, but for some time past custom had mitigated the rigour of a law so little in harmony with the precepts of civilization, and for a number of years no execution of this kind had taken place. That of the unfortunate Serkiz must therefore be considered as a sad return to the barbarity of Mahomedan fanaticism. It must be so much the more so because, on the one hand, the energetic intercession of Sir Stratford Canning in behalf of the victim was fruitless; and because, on the other, the Turkish authorities, in leading Serkiz, although he was an Armenian, in the Frank costume and with a cap upon his head to execution, seem to have wished to give to this bloody spectacle the character of a public defiance offered by the old Mahomedan cruelty to the influence of European manners and Christian civilization.

Setting out from this view of the case and looking upon the catastrophe which has just taken place as a fresh symptom of the retrograde, and it may be said anti-European, tendency from which it is important that the Turkish Government should, in its own interest, be diverted, the Representatives of the Five Great Powers at Constantinople thought that a joint representation,

at once kind and earnest, which those Powers should make for this purpose to the Sublime Porte, would produce a salutary impression upon it. They, therefore, and at the special request of Sir Stratford Canning, applied to their respective Courts for the instructions necessary to enable them to take the step in question, and the English Ambassador wished moreover to propose to Lord Aberdeen to communicate in the same sense with the Cabinets of Berlin, Vienna, Paris, and St. Petersburg.

I have not yet received any communication upon this subject from the Principal Secretary of State; but I lost no time in replying by the despatch of which I inclose a copy, to that which the Envoy of the King at Constantinople addressed to His Majesty respecting this affair.

Have the goodness, Sir, to communicate it, as well as this despatch, to Lord Aberdeen, and to express to his Lordship, on my part, the hope that I have in this manner anticipated the overtures which he would perhaps have caused to be made to me with reference to the step proposed by the Five Representatives at Constantinople, but especially suggested by the English Ambassador.

Accept, &c.,

(Signed) BULOW

Inclosure 2 in No. 3.

Baron Bülow to M. Le Coq.

Monsieur, *Berlin, ce 20 Septembre, 1843.*

Vos rapports au Roi, &c., &c.

Ce que vous avez mandé sur l'exécution de l'Arménien Serkiz Papazoghlu n'a pu manquer de nous inspirer un intérêt aussi vif que douloureux. En effet tous les détails de cette sanglante catastrophe sont bien de nature à mériter la sérieuse attention des Puissances Européennes. Ce sont autant de symptômes d'une tendance rétrograde à laquelle la Sublime Porte paraît s'être abandonnée depuis quelques années, et qui, en tolérant et en favorisant peut-être même les excès du fanatisme Musulman, est aussi contraire aux lois de l'humanité qu'aux règles qu'une saine politique devrait dicter au Gouvernement Ottoman.

A en juger d'après les circonstances qui ont précédé, accompagné et suivi la mort de cette malheureuse victime de la rigueur Mahométane, ne serait-on pas tenté de croire que ce Gouvernement a oublié ce qu'il doit aux efforts réunis des Grandes Puissances, à leurs conseils désintéressés, à la salubre influence de la civilisation Européenne? Ne semble-t-il pas, en opposant aux mœurs plus douces qui sont la suite de cette civilisation la lettre impitoyable du Coran, avoir l'intention de faire sentir à l'Europe entière le peu de cas qu'il fait du bienveillant intérêt, de la constante sollicitude que lui ont voués les Cabinets Européens,

Or, les graves conséquences, qu'un pareil système [sic] entraînerait pour la Porte, en finissant par lui aliéner réellement l'intérêt de ces Cabinets, sont si évidentes, que nous aimons à croire qu'un avertissement unanime de leur part suffira pour la détourner d'une voie également désastreuse sous le point de vue politique et moral. Je me range sous ce rapport entièrement à l'avis de Sir Stratford Canning, et après avoir pris les ordres du Roi, notre Auguste Maître, je vous invite, Monsieur, à vous associer à la démarche que, je n'en doute pas, Messieurs vos collègues d'Autriche, de France et de Russie seront également autorisés à faire à cet effet auprès du Gouvernement Turc en commun avec M. l'Ambassadeur d'Angleterre. Dans cette occasion où les Représentans des Cinq Grandes Puissances agiront en

quelque sorte comme organes de la civilisation Européenne, il importera surtout de constater leur unanimité. Veuillez par ce motif, Monsieur, attendre que les instructions que Messieurs vos collègues ont sollicitées, leur soient parvenues, et alors vous concerter avec eux sur la meilleure forme à donner à la démarche qu'elles prescrivent. Si contre toute attente ces instructions n'étaient pas de nature à établir un accord entier des Cinq Puissances dans cette affaire, vous voudrez bien, Monsieur, m'en informer, pour que je puisse, selon les circonstances, vous faire parvenir des directions ultérieures. En tout cas la démarche en question devra se borner à être simultanée et non pas collective, et le langage que vous tiendrez à la Porte, pour être sérieux et ferme, ne s'en tiendra pas moins dans les bornes d'un conseil amical, et évitera tout ce qui pourrait blesser la susceptibilité politique et religieuse du Gouvernement Ottoman.

Nous n'avons pas encore reçu la communication à laquelle nous pouvons nous attendre de la part de Lord Aberdeen, en suite de la demande que Sir Stratford Canning lui a adressée au sujet de l'affaire qui fait l'objet de la présente dépêche. Mais j'envoie une copie de cette dernière à l'Envoyé du Roi à Londres, pour en donner connaissance à M. le Principal Secrétaire d'Etat, et pour informer de cette manière sa Seigneurie que, d'accord avec Sir Stratford Canning sur l'opportunité de la démarche qu'il a proposée, le Cabinet du Roi s'est empressé de vous autoriser à y concourir.

Recevez, &c.,

(Signé) BULOW.

(Translation.)

Sir, *Berlin, September 20, 1843.*

Your reports to the King, &c. &c.

The account which you have given of the execution of the Armenian Serkiz Papazoglou could not fail to excite our lively and painful interest. Indeed all the details of this bloody catastrophe are well calculated to deserve the serious attention of the European Powers. They are so many symptoms of a retrograde tendency to which the Sublime Porte appears to have given itself up for some years past, and which, by tolerating, and perhaps even encouraging the excesses of Mahomedan fanaticism, is as contrary to the laws of humanity as to the rules which a wholesome policy should dictate to the Turkish Government.

To judge from the circumstances which preceded, attended, and followed the death of this unhappy victim of Mahomedan severity, should we not be tempted to think that that Government has forgotten what it owes to the united exertions of the Great Powers, to their disinterested advice, and to the salutary influence of European civilization? Does it not appear, by placing in opposition to the milder customs which are the result of that civilization the inexorable letter of the Koran, to intend to make the whole of Europe feel the little importance which it attaches to the benevolent interest and the constant solicitude with which the European Cabinets have regarded it?

Wherefore, the serious consequences, which such a system would entail upon the Porte, by finally alienating from it in reality the interest of those Cabinets, are so evident, that we are fain to believe that an unanimous intimation on their part will suffice to turn it aside from a course equally disastrous in a political and in a moral point of view. I side entirely in this respect with the opinion of Sir Stratford Canning, and after having taken the orders of the King, our august Master, I request you, Sir, to join in the step which I doubt not your colleagues of Austria, France and Russia will be equally authorized to take to this effect towards the Turkish Government, in common with the Ambassador of England. On this occasion when the

Representatives of the Five Powers will act in some manner as the organs of European civilization, it will above all things be important to evince their unanimity. For this reason, have the goodness, Sir, to wait until the instructions for which your colleagues have applied, have reached them, and thereupon concert with them as to the best form to be given to the step which those instructions prescribe. If, contrary to all expectation, those instructions should not be such as to demonstrate an entire agreement of the Five Powers on this matter, you will have the goodness, Sir, to inform me of the fact, in order that I may, according to circumstances, transmit to you further instructions. In any case the step in question should be limited to being simultaneous and not collective, and the language which you will hold to the Porte, while it is serious and firm, must not the less be confined within the bounds of friendly counsel, and must avoid everything that could wound the political and religious susceptibility of the Ottoman Government.

We have not yet received the communication which we may expect from Lord Aberdeen, in pursuance of the application made to him by Sir Stratford Canning, on the subject of the matter treated of in this despatch. But I send a copy of this last to the King's Envoy in London, in order that he may communicate it to the Principal Secretary of State, and in this manner acquaint his Lordship that the King's Cabinet, agreeing with Sir Stratford Canning as to the fitness of the step which he has proposed, has hastened to authorize you to concur in it.

Receive, &c.,

(Signed) BULOW.

No. 4.

The Earl of Aberdeen to Sir Stratford Canning.

Sir, *Foreign Office, October 4, 1843.*

The barbarous execution of the Armenian, recorded in your Excellency's despatch of the 27th of August, has excited the attention and interest of Her Majesty's Government in an unusual degree; and they highly approve the line of conduct which you pursued in reference to it.

Her Majesty's Government had hoped that the time had passed away when the perpetration of such acts of atrocity could have been tolerated; and that the law by which they are permitted or enjoined, although it might still disgrace the Mahomedan code, had fallen so completely into disuse as to have become virtually null and of no effect.

It is, therefore, with the most painful feelings, that Her Majesty's Government have seen so cruel a law brought so injudiciously again into operation; and they consider every Christian Government not only justified, but imperatively called upon to raise their voices against such proceedings, whether the law be executed to the prejudice of their own subjects, or of the Christian community in general.

Her Majesty's Government confidently trust that no repetition of so unjustifiable an act as that against which your Excellency so properly remonstrated will ever be suffered, and still less authorized by the Turkish Government; and they earnestly counsel that Government to take immediate measures for effectually preventing the future commission of such atrocities.

Under the full conviction that the Sultan will have the humanity and wisdom to listen to this counsel, which is given with the most friendly feeling, and which will, I doubt not, be equally impressed on His Highness by other Christian Governments, I do not think it necessary to enter further at present into the other points set forth in your Excellency's despatch above referred to.

You will not fail to communicate this despatch to Rifaat Pasha.

I am, &c.,

(Signed) ABERDEEN.

No. 5.

The Earl of Westmorland to the Earl of Aberdeen.—(Received October 30.)

My Lord, *Berlin, October 23, 1843.*

I have communicated to Baron Bülow your Lordship's despatch of the 4th instant to Sir Stratford Canning relative to the late execution of an Armenian at Constantinople, and his Excellency has requested me to express the interest with which he had learnt your Lordship's views on that subject.

I have, &c.,

(Signed) WESTMORLAND.

No. 6.

Sir Stratford Canning to the Earl of Aberdeen.—(Received November 2.)

My Lord, *Buyukderé*, October 11, 1843.

The Prussian Minister has communicated to me an instruction addressed to him by Baron Bülow in reply to his representations on the subject of the Armenian youth, whose execution and its natural consequences were brought under your Lordship's notice in my despatch of August the 27th.

The French Minister has also communicated to me a note, transmitted to him from Paris for presentation to the Porte, with reference to the same deplorable act of the Turkish Government.

Copies of these two papers have not been given to me; but I understand that the Prussian instruction has been sent to your Lordship, and it is probable that the same degree of confidence has been shewn to your Lordship by M. Guizot. I have only to remark that the terms in which these documents are respectively expressed, appear to me highly creditable to the Cabinets from which they have issued, and, should your Lordship see fit to instruct me in a similar sense, it would afford me great satisfaction to repeat to the Turkish Minister, with the immediate authority of Her Majesty's Government, what I ventured at the time to intimate by anticipation on my own suggestion. Baron Bülow and M. Guizot appear to be equally impressed with the dangerous character of that policy to which the Armenian execution is traceable, and their reprobation of the act itself is proportionally strong. Baron de Bourqueney is prepared to give in his note without waiting for the concurrence of his colleagues. M. Le Coq is

instructed to act simultaneously with the other Representatives of the Five Powers.

With respect to the Austrian and Russian Ministers, I am informed by M. de Titow that the Emperor of Russia's absence from St. Petersburg has prevented his receiving an immediate answer to his despatches; and I hear that the Internuncio refers to a communication made by Prince Metternich to the Turkish Ambassador at Vienna as sufficiently expressive of the sentiments of his Court and superseding the necessity of any step on his part without further instructions.

I would venture humbly to submit that a concurrent expression of the sentiments of the Five Courts on such an occasion would hardly fail of producing a most beneficial effect upon the counsels of the Porte.

I have, &c.,

(Signed) STRATFORD CANNING.

No. 7.

The Earl of Aberdeen to Sir Stratford Canning.

(Extract.) *Foreign Office, November 4, 1843.*

I have received your despatch of the 11th of October, reporting that the French and Prussian Ministers had received instructions from their

respective Governments on the subject of the execution of the Armenian referred to in your despatch of the 27th of August.

I calculate that your Excellency will have received on the 24th ultimo my despatch of the 4th, by which your Excellency will have been enabled to acquaint the Porte with the feelings with which Her Majesty's Government had received the intelligence of that melancholy transaction. I have nothing to add to that instruction.

No. 8.

Sir Stratford Canning to the Earl of Aberdeen.—(Received November 23.)

My Lord, *Buyukdéré*, October 31, 1843.

The instruction which I have received from your Lordship respecting the Armenian decapitated for returning to the Christian faith, cannot fail of making a deep and, I hope, a salutary impression upon the Ottoman Ministers.

I have had it carefully translated into Turkish, and placed in M. Pisani's hands for communication to the Porte, accompanied with an instruction of which I have the honour to inclose a copy herewith.

Monsieur de Bourqueney having been directed to present an official note upon the same subject, I thought it advisable to give a certain degree of formality to the communication of your Lordship's despatch, and

particularly to leave it with the Minister for Foreign Affairs in writing. A copy of the French Minister's note is herewith inclosed.

The presentation of this remonstrance has strongly excited the public attention, and occasioned no small embarrassment at the Porte. It was proposed in Council to return it, but the suggestion was overruled, and I hear that nothing will be added to the verbal reply already given.

The substance of that reply, which M. de Bourqueney read to me from the report of his first interpreter, is by no means unfavourable. The language employed by Rifaat Pasha in speaking of the French Minister's note to M. Pisani, admitted, in substance, that much might be said with reason against the manner and circumstances of the execution, but as to the act itself, he said that nothing could be alleged against a judgment founded upon the express will of God. His answer to the communication of your Lordship's instruction has not yet reached me. It will have the greater interest as two more cases of religion involving capital punishment have recently occurred. The offender in each instance is a native Mussulman; and nothing, I conceive, but the late expression of indignation has prevented the Porte from executing the sentence of the law.

I am informed that Rifaat Pasha, on consulting the Grand Mufti as to one of these cases, was advised not to bring it under His Holiness' notice as he had no choice but to declare the law; and a charitable intimation was added, that where a State necessity existed, the Porte would herself be found the most competent judge.

The Russian Minister informs me that he is still in expectation of instructions from St. Petersburg. The Internuncio refers to the remarks addressed by Prince Metternich himself to the Turkish Ambassador at Vienna. M. de Le Coq reserves the communication of his instruction, in the hope of being able to act simultaneously with M. de Titow. The silence of

any one of the leading Courts on such an occasion would be a cause of just regret.

I have, &c.,

(Signed) STRATFORD CANNING.

Inclosure l in No 8.

Baron de Bourqueney to Rifaat Pasha.

Thérapia, 17 Octobre, 1843.

Le Soussigné, Ministre Plénipotentiaire de Sa Majesté le Roi des Français près la Porte Ottomane, a reçu de son Gouvernement l'ordre de faire à son Excellence le Ministre des Affaires Etrangères la communication suivante.

C'est avec un douloureux étonnement que le Gouvernement du Roi a appris la récente exécution d'un Arménien qui, après avoir embrassé la religion Musulmane, était revenu à la foi de ses pères, et que pour ce seul fait on a frappé de la peine capitale, parcequ'il refusait à racheter sa vie par une nouvelle abjuration.

En vain pour expliquer un acte aussi déplorable voudrait-on se prévaloir des dispositions impérieuses de la législation. On devait croire que la législation faite pour d'autres temps était tombée en désuétude; et en tout cas il était trop facile de fermer les yeux sur un pareil fait pour qu'on puisse considérer ce qui vient d'arriver comme une de ces déplorables nécessités dans lesquelles la politique trouve quelquefois non pas une justification mais une excuse.

Lors même que l'humanité, dont le nom n'a jamais été invoqué en vain en France, n'aurait pas été aussi cruellement blessée par le supplice de cet Arménien, lors même que le Gouvernement du Roi, qui a toujours protégé, et protégera toujours la religion Chrétienne en Orient, pourrait oublier que c'est le Christianisme qui a reçu ce sanglant outrage, l'intérêt qu'il prend à l'Empire Ottoman et à son indépendance, lui ferait encore voir avec une profonde douleur ce qui vient de se passer.

Cette indépendance ne peut aujourd'hui trouver une garantie efficace que dans l'appui de l'opinion Européenne. Les efforts du Gouvernement du Roi ont constamment tendu à lui ménager cet appui. Cette tâche lui deviendra bien plus difficile en présence d'un acte qui soulevera dans l'Europe entière une indignation universelle.

Le Gouvernement du Roi croit accomplir un devoir impérieux en faisant connaître à la Porte l'impression qu'il a reçue d'un fait malheureusement irréparable, mais qui, s'il pouvait se renouveler, serait de nature à appeler des dangers réels sur le Gouvernement assez faible pour faire de telles concessions à un odieux et déplorable fanatisme.

Le Soussigné, &c.,

(Translation.)

Therapia, October 17, 1843.

The Undersigned, Minister Plenipotentiary of His Majesty the King of the French at the Ottoman Porte, has received orders from his Government to make the following communication to the Minister for Foreign Affairs.

It has been with a painful astonishment that the King's Government has learnt the late execution of an Armenian who, after embracing the Musulman religion, returned to the faith of his fathers, and who, for this act alone, has been capitally punished, because he refused to redeem his life by a fresh recantation.

In vain can the imperious terms of the law be appealed to for an explanation of so lamentable an act. It might have been supposed that a system of law formed for other times had fallen into desuetude; and at all events it was too easy to overlook such a circumstance to admit of that which has happened being considered as one of those lamentable cases of necessity, in which policy sometimes finds not so much a justification as an excuse.

Even had not humanity, whose name has never been vainly invoked in France, been so cruelly hurt by the punishment of this Armenian,—even could the King's Government, which has always protected, and ever will protect, the Christian religion in the East, forget that it is Christianity which has been thus cruelly outraged,—the interest which it takes in the Ottoman Empire and in its independence would still cause it to behold what has occurred with profound regret.

That independence can in these times find a real security only in the support of the public opinion of Europe. The efforts of the King's Government have been constantly directed towards obtaining for it that support. This task will become much more difficult after an act which will excite universal indignation throughout the whole of Europe.

The King's Government considers that it discharges an imperious duty in making known to the Porte the impression which has been made upon it by an event unfortunately irreparable, and which, were it to occur again, would

be likely to cause real danger to a Government weak enough to make such concessions to a hateful and lamentable fanaticism.

The Undersigned, &c.,

Inclosure 2 in No. 8.

Sir Stratford Canning to M. Pisani.

Sir, *Buyukderé*, October 30, 1843.

In presenting to the Minister for Foreign Affairs the accompanying translation of an instruction addressed to me by the Earl of Aberdeen, with reference to the Armenian who was lately executed at Constantinople, you will be careful to impress his Excellency with a conviction of the deep and painful sentiments excited throughout Great Britain by that deplorable act.

You will require that the instruction be forthwith submitted not only to his Highness the Grand Vizier, but also to His Imperial Majesty the Sultan.

A copy of this letter, with a translation in Turkish, is to be left with Rifaat Pasha.

(Signed) STRATFORD CANNING.

No. 9.

Sir Stratford Canning to Mr. Addington.—(Received November 23.)

Sir, *Buyukderé*, November 3, 1843.

A delay in the departure of the messenger affords me the opportunity of transmitting to you at once the inclosed report addressed to me to-day by M. Pisani. Though not official, it shews the strong impression which has been made upon the Porte by a knowledge of the sentiments entertained throughout Europe with reference to the Armenian lately executed. The Porte will probably seek to avoid replying ostensibly to the remonstrances of the several leading Courts, but means will, no doubt, be taken to prevent the necessity of practising such atrocities in future. A degree of success so important, though limited, might reasonably encourage the allied Courts to enter into a more complete understanding for the removal of other blots from the legal or political practice of the Turks, in their intercourse with Christians.

I have, &c.,

(Signed) STRATFORD CANNING.

Inclosure in No. 9.

M. Pisani to Sir Stratford Canning.

Excellence, *Péra*, ce 3 Novembre, 1843.

J'ai conformément à vos ordres remis à Rifaat Pacha la traduction en Turc des instructions du Comte d'Aberdeen et de la lettre de votre Excellence, avec une copie de votre lettre.

Rifaat Pacha a lu la traduction des deux pièces qu'il a trouvées très-importantes. Il m'a dit qu'il mettra les instructions de Lord Aberdeen sous les yeux du Grand Vizir et du Sultan.

Rifaat Pacha m'a dit confidentiellement que les mesures qu'il est question de prendre sont, d'ordonner à toutes les autorités à Constantinople et dans les provinces, d'avoir désormais soin, lorsqu'un Turc qui était Chrétien, se fait Chrétien de nouveau, et lorsqu'un Turc dit des injures contre Mahomet ou contre les Prophètes, ou vomit d'autres blasphèmes, de ne pas permettre qu'il soit traduit et jugé devant un Mehkemé quelconque; mais si le cas arrive à Constantinople, d'envoyer l'accusé à la Porte, et s'il arrive dans un pays hors de Constantinople, de l'envoyer au Pacha de la province, sans aucune espèce de jugement préalable. De cette manière-ci, dit Rifaat Pacha, la Porte et les Pachas au-dehors songeront aux moyens de terminer ces sortes d'affaires sans éclat, et (j'ose inférer des paroles de son Excellence) sans recourir à la peine capitale.

Rifaat Pacha a ajouté que la Porte ne peut faire aucune réponse par écrit sur cette affaire sans se compromettre, soit vis-à-vis des Puissances Chrétiennes, en disant qu'elle est obligée de mettre à exécution la loi qui regarde les Chrétiens qui, après avoir embrassé l'Islamisme de leur propre gré, y renoncent et redeviennent Chrétiens, et qui encourent par là la peine de mort,—soit vis-à-vis de la loi, en déclarant qu'elle ne sera pas exécutée à l'avenir dans un cas semblable à celui de l'Arménien.

Mais Rifaat Pacha m'a paru convaincu qu'après le bruit que l'Europe a fait, une scène semblable à celle de l'Arménien ne se renouvellera point. Les mesures que le Gouvernement se propose de prendre ont pour but d'éviter un jugement; et sans jugement on ne peut condamner personne à mort. L'Arménien avait été jugé au Mehkemé dit du Stambol Effendi, avant d'être envoyé à la Porte. Le Kiatib qui est en prison pour avoir dit des injures contre Mahomet, a été jugé au Mehkemé de Salonique, avant d'être envoyé à Constantinople; et le Conseil suprême l'a déclaré digne de mort, quoiqu'il n'ait pas été juridiquement et formellement condamné ici encore.

La circonstance que le Kiatib a été jugé déjà et convaincu d'avoir blasphémé le nom de Mahomet, expose ses jours au plus grand danger.

J'ai l'honneur, &c.,

(Signé) FREDERIC PISANI.

(Translation.)

Excellency, *Pera*, November 3, 1843.

In conformity with your orders, I placed in the hands of Rifaat Pasha the Turkish translation of Lord Aberdeen's instructions and of your Excellency's letter, with a copy of your letter.

Rifaat Pasha read the translation of the two documents which he considered to be of great importance. He told me that he will lay Lord Aberdeen's instructions before the Grand Vizier and the Sultan.

Rifaat Pasha told me confidentially that the measures which it is proposed to take, are to order all the authorities at Constantinople and and [sic] in the provinces henceforth to take care that when a Turk who was a Christian, becomes again a Christian, and when a Turk speaks insultingly of Mahomet or the Prophets, or utters other blasphemies, he shall not be allowed to be given up to, and judged by, any Mehkemé whatever; but if the case occurs at Constantinople, the accused shall be sent to the Porte, or if it occurs in a district beyond Constantinople, he shall be sent to the Pasha of the province without any previous judgment. In this manner, said Rifaat Pasha, the Porte and the provincial Pashas will devise means for terminating affairs of this kind without noise, and (I venture to infer from his Excellency's words) without having recourse to capital punishment.

Rifaat Pasha added, that the Porte can give no written answer respecting this affair without compromising itself either as regards the Christian Powers, by stating that it is forced to execute the law regarding Christians who, after having of their own accord embraced Islamism, renounce it and become Christians again, and thus incur capital punishment,—or as regards the law, by declaring that it will not for the future be executed in cases similar to that of the Armenian.

Rifaat Pasha, however, seemed to me convinced that after the noise which has been made in Europe, a scene similar to that of the Armenian cannot be renewed. The measures which the Government are about to adopt have for their object to avoid a trial, and without a trial no one can be condemned to death. The Armenian was tried at the Mehkemé called that of the Stambol Effendi, before being sent to the Porte. The Kiatib who is in prison for having uttered blasphemies against Mahomet, was judged at the Mehkemé of Salonica, before he was sent to Constantinople; and the Supreme Council has declared him worthy of death, although he has not yet been judicially and formally condemned here. The circumstance of the Kiatib having already been tried and convicted of uttering blasphemy against the name of Mahomet puts his life in the most imminent danger.

I have, &c.,

(Signed) FREDERICK PISANI.

No. 10.

Sir Stratford Canning to the Earl of Aberdeen.—(Received December 5.)

(Extract.) *Buyukderé*, November 17, 1843.

I am happy to state that a serious and salutary impression has been made upon the Turkish Government by the communication of your Lordship's instruction respecting the Armenian decapitated in the streets of Constantinople. Preceded as that communication was by the delivery of M. Guizot's impressive note, and followed, as I believe it to have been, by the presentation of Baron Bülow's instruction to M. de Le Coq, the Porte has felt, even in the absence of any similar declaration from the Austrian and Russian Legations, that she cannot with prudence or safety repeat an atrocity tending so directly to excite the indignant feelings of Christendom against her. I have not received, nor indeed have I yet demanded, an official answer to my remonstrance. M. de Bourqueney, though, like myself, without instructions on that point, has made the demand, but, at my request, he has abstained from pressing it, agreeing, on reflection, with me, that it would be advisable at all events to afford time for M. de Titow to hear from his Government, and to take a step more or less in harmony with ours. It remains indeed to be considered whether it would be prudent, even with that advantage, to insist upon receiving a formal answer. I have already forwarded to your Lordship's office the substance of Rifaat Pasha's remarks, and they convey an assurance that the Porte will in future find means to avoid the application of the law in cases like that which proved fatal to the unfortunate Armenian.

The apparent consequences of what has been done in this matter are, a Ministerial understanding that occasions of calling the law into action as to religious offences involving a capital punishment are for the future to be avoided, and a proclamation addressed to the Turkish authorities in Roumelia for the better treatment and protection of the Sultan's Christian subjects.

I venture to believe that your Lordship will derive the same gratification which I do from this result.

No. 11.

Sir Stratford Canning to the Earl of Aberdeen.—(Received December 18.)

My Lord, *Buyukderé*, November 20, 1843.

I have the satisfaction to state, that the Russian Envoy has informed me of his having received an instruction from his Court on the subject of the Armenian youth decapitated at Constantinople. His Excellency has given me to understand that the terms of this instruction are in harmony with the sentiments of Her Majesty's Government; and I presume that he will make me a more complete communication of its contents the first time we meet.

I have, &c.,

(Signed) STRATFORD CANNING.

No. 12.

Sir Stratford Canning to the Earl of Aberdeen.—(Received December 24.)

(Extract.) *Constantinople, December 1, 1843.*

Having sounded Rifaat Pasha as to his intention of answering the representations of the Five Powers concerning the late religious execution, I was told by his Excellency that, although the Porte wished to avoid any recurrence of that atrocity, yet, as such executions, divested of the objectionable forms which accompanied the Armenian's death, were obligatory under the law considered by Mahomedans divine, and might be forced incidentally upon the Government, it would be embarrassing to give an official declaration to that effect. Some ostensible record of the Porte's intention to avoid religious exeutions [sic] in future would, I humbly conceive, be satisfactory to Her Majesty's Government, and it would not perhaps be impossible to frame a reply, which might convey the required security without coming into collision with the Mussulman faith. There is reason otherwise to apprehend that the advantage now obtained will be of very short duration.

P.S.—There is reason to fear that another religious execution has recently taken place in the Pashalic of Brussa.

No. 13.

Sir Stratford Canning to the Earl of Aberdeen.—(Received January 5, 1844.)

(Extract.) *Buyukderé*, December 17, 1843.

I have the honour to state, and I do so with much concern, that the rumour, which has for some time prevailed, of another execution, similar to that of the Armenian youth, having taken place by order of the Porte, is now confirmed. The statements inclosed herewith describe the circumstances as far they are known. One of them is an extract of a despatch addressed to me by Her Majesty's Consul at Brussa, which is at no great distance from Biligik where the Greek was executed. The other was communicated to me by one of my diplomatic colleagues.

Rifaat Pasha in conversing with me some time ago alluded to this execution, of which I had then scarcely heard the rumour, and he spoke of it as a kind of accident, which had occurred prior to the late remonstrances respecting the Armenian, and which was not to be taken in proof of an objectionable policy at the Porte. With a variation of terms, and in some degree of facts also, he has offered the same kind of vague excuse to others, and I believe in particular to the Internuncio.

I presume that your Lordship would not approve of such an occurrence being thrown into oblivion without an attempt at explanation, and I am persuaded that any backwardness under such circumstances would only serve to confirm the Porte in her present infatuated course of policy. I have, therefore, communicated upon the subject with my colleagues of Austria, France, Russia, and Prussia, and finding them all substantially of the same mind, I have drawn up the instruction of which a copy is here inclosed, and sent it to Rifaat Pasha by M. Pisani. Similar instructions were sent in by the others, though neither collectively, nor simultaneously, and perhaps not in writing by the Austrian and Russian Ministers.

Your Lordship will observe that we ask for a distinct assurance from the Porte that measures shall be taken to prevent the recurrence of such

revolting punishments in future. In proposing to make this demand I had in view the corresponding passage in your Lordship's instruction, communicated to Rifaat Pasha, and I thought to satisfy M. de Bourqueney, who had presented an official note in the former instance and applied for an answer, without exceeding the limits which my other colleagues were prepared to observe. Their joint acceptance of the suggestion, and their engagements to make the same demand, induce me to hope that the Porte's reply will prove satisfactory, though I cannot yet speak with confidence in that respect.

Inclosure I in No. 13.

Mr. Consul Sandison to Sir Stratford Canning.

(Extract.) *Brussa, December 9, 1843.*

A fresh instance, I learn, has unfortunately occurred about a week ago of the sanguinary spirit of the Turkish law and people against relapsed proselytes. A young Greek at Biligik in the adjoining district, who had become a Mussulman and returned to his own creed, has been put to death by hanging. He must have been a willing victim from what my informant states, as his profession of Islamism had been complete according to the usual rites.

P.S.—The execution of the Greek at Biligik took place, I further learn, after the return of an answer from the Turkish Government to a report on the case from the municipality of Biligik.

Inclosure 2 in No. 13.

Extract of Letter communicated by M. de Cordoba to Sir Stratford Canning.

Constantinople, 6 Décembre, 1843.

Un jeune Grec s'était fait Turc dans un moment de mauvaise humeur; revenu a lui, il était allé trouver un prêtre et avait témoigné le désir de rentrer dans sa croyance. L'ecclésiastique, approuvant sa pensée, lui dit qu'il devait réparer sa faute en revenant publiquement sur son erreur. Le jeune homme, âgé de 22 ans, fit la chose comme elle lui était ordonnée. Aussitôt les autorités Turques s'emparent de lui et le mettent au secret: ceci se passe aux environs de Brousse. L'on rapporte le fait à Constantinople: ici, en dépit des notes Française, Anglaise, &c., on tient conseil, et l'ordre est envoyé de l'exécuter, et en effet il y a quatorze à quinze jours cet infortuné a été pendu publiquement à Biligik. L'effet qui cet événement a produit sur les habitans Turcs du lieu a été tel que le Gouverneur a dû prendre les plus grandes précautions pour empêcher le massacre de tous les habitans.

(Translation.)

Constantinople, December 6, 1843.

A young Greek turned Turk in a moment of ill temper; having come to himself, he went to a priest and evinced a desire to return to his faith. The priest, approving his intention, told him that he must repair his fault by a public retractation of his error. The young man, who was twenty-two years of age, did as he was ordered. Forthwith the Turkish authorities lay hold of him and shut him up: this happens in the neighbourhood of Brussa. The transaction is reported to Constantinople: here, notwithstanding the French and English notes, &c., a Council is held, and the order to execute him is sent off, and in fact this unfortunate person was publicly hanged at Biligik fourteen or fifteen days ago. The effect which this event produced on the Turkish inhabitants of the place has been such that the Governor has been under the necessity of taking the greatest precautions to prevent the massacre of all the inhabitants.

Inclosure 3 in No. 13.

Sir Stratford Canning to M. Pisani.

Sir, Buyukderé, December 16, 1843.

It is with sentiments of deep concern that I have received unquestionable intelligence of another religious execution, similar in principle to that of the Armenian Avakim. In stating this circumstance without delay to the Minister for Foreign Affairs, you will lay before his Excellency the substance of the two accompanying papers, which contain a relation of the principal facts. You will express the surprise and disappointment which I feel in the contemplation of so revolting an act, after the very distinct communications which had recently taken place between his Excellency and myself respecting the previous case. A full knowledge of the sentiments entertained by Her Majesty's Government, and also by four other leading Cabinets of Europe, has not to all appearance prevented the Porte from again publicly outraging the principles of humanity, and again exposing herself to the just animadversion of those friendly Powers.

Under these circumstances, and referring to the instructions of my Government already communicated to Rifaat Pasha, I deem it an indispensable duty to invite the explanations of the Porte, and to state my expectation that the Turkish Government will not only declare its regret for the two executions in suitable terms, but that it will accompany the declaration with an assurance, admitting of no question for the future, that effective measures will be immediately taken to preclude the recurrence of such unwise and odious acts.

You will conclude by leaving with Rifaat Pasha a copy of this instruction, and by calling upon his Excellency to lay it before the Sultan, and to

apprize you on an early day of the answer sanctioned by His Majesty, for the information of my Government.

I am, &c.,

(Signed) STRATFORD CANNING.

No. 14.

M. Guizot to Count Ste. Aulaire.—(Communicated by Count Ste. Aulaire to the Earl of Aberdeen, January 13.)

(Extract.) *Paris, le 9 Janvier, 1844.*

Malgré les promesses formelles de la Porte, et les mesures qu'elle disait avoir prises pour empêcher le renouvellement du douloureux scandale auquel avait donné lieu, il y a quelques mois, l'exécution d'un Arménien supplicié pour être revenu à la religion Chrétienne après avoir embrassé l'Islamisme, un Grec des environs de Brousse vient encore d'être mis à mort dans des circonstances absolument semblables. Interpellé à ce sujet par M. de Bourqueney, la Porte n'a su alléguer pour se justifier que des malentendus et des méprises dont les allégations même sont contradictoires. Un tel fait n'est plus seulement un outrage à l'humanité, c'est une insulte jetée à l'Europe civilisée par le fanatisme d'un parti que le Gouvernement Ottoman n'a pas le courage de contenir et de réprimer, à supposer qu'il n'en soit pas lui-même le complice dans une certaine mesure. Ce courage, il faut le lui donner en lui faisant craindre d'encourir le sérieux mécontentement des Puissances dont l'appui bienveillant lui est si nécessaire.

Je vais charger M. de Bourqueney de faire à cet effet une démarche énergique auprès de la Porte, et je ne doute pas que Lord Aberdeen ne donne à Sir Stratford Canning des instructions analogues. Le Gouvernement Britannique croira certainement aussi devoir se joindre à nous pour demander le concours des autres Grandes Puissances.

(Translation.)

Paris, January 9, 1844.

Notwithstanding the formal promises of the Porte, and the measures which it had declared that it had taken to prevent the repetition of the mournful scandal to which a few months ago the execution of an Armenian who was punished for having returned to Christianity after having embraced Islamism, gave rise, a Greek of the neighbourhood of Brussa, has now been put to death, under circumstances precisely similar. On being questioned on this subject by M. de Bourqueney, the Porte could only allege in its justification misunderstandings and mistakes the very allegations with regard to which are contradictory. Such a transaction is no longer only an outrage to humanity, it is an insult cast upon civilized Europe, by the fanaticism of a party which the Ottoman Government has not the courage to keep within bounds and repress, supposing that it is not itself to a certain degree an accomplice in the measure. This courage must be given to it by causing it to apprehend that it will incur the serious displeasure of the Powers whose benevolent support is so necessary to it.

I am about to instruct M. de Bourqueney to take an energetic step for this purpose towards the Porte, and I doubt not that Lord Aberdeen will furnish Sir Stratford Canning with corresponding instructions. The British Government will likewise assuredly think fit to unite with us in demanding the concurrence of the other Great Powers.

No. 15.

The Earl of Aberdeen to Sir Stratford Canning.

Sir, *Foreign Office, January 16, 1844.*

I have received your Excellency's despatch of the 17th of December, reporting that a Greek had been executed near Brussa as an apostate from Islamism, and inclosing a copy of the communication which you had directed Mr. Dragoman Frederick Pisani to make to the Porte in consequence of that transaction.

I have to state to your Excellency that Her Majesty's Government entirely approve the promptitude with which you acted on this occasion. But the repetition of a scene of this revolting kind so soon after that which had, in the course of last summer, excited the horror and indignation of Europe, evinces such total disregard, on the part of the Porte, for the feelings and remonstrances of the Christian Powers, that it is incumbent upon Her Majesty's Government without loss of time to convey their sentiments on the matter still more explicitly to the knowledge of the Porte. They take this course singly, and without waiting for the co-operation of the other Christian Powers, because they desire to announce to the Porte a determination which, though it doubtless will be concurred in by all, Great Britain is prepared to act upon alone. Her Majesty's Government feel too that they have an especial right to require to be listened to by the Porte on a matter of this nature, for they can appeal to the justice and to the favour with which the vast body of Mahomedans subject to the British rule are treated in India, in support of their demand that all persons, subjects of the Porte and professing Christianity, shall be exempt from cruel and arbitrary persecution on account of their religion, and shall not be made the victims of a barbarous law, which it may be sought to enforce for their destruction.

Whatever may have been tolerated in former times by the weakness or indifference of Christian Powers, those Powers will now require from the Porte due consideration for their feelings as members of a religious community, and interested as such in the fate of all who, notwithstanding shades of difference, unite in a common belief in the essential doctrines of Christianity; and they will not endure that the Porte should insult and trample on their faith by treating as a criminal any person who embraces it.

Her Majesty's Government require the Porte to abandon, once for all, so revolting a principle. They have no wish to humble the Porte by imposing upon it an unreasonable obligation; but as a Christian Government, the protection of those who profess a common belief with themselves, from persecution and oppression, on that account alone, by their Mahomedan rulers, is a paramount duty with them, and one from which they cannot recede.

Your Excellency will therefore press upon the Turkish Government that, if the Porte has any regard for the friendship of England,—if it has any hope that, in the hour of peril or of adversity, that protection which has more than once saved it from destruction, will be extended to it again, it must renounce absolutely, and without equivocation, the barbarous practice which has called forth the remonstrance now addressed to it. Your Excellency will require an early answer; and you will let the Turkish Ministers understand that if that answer does not fully correspond with the expectations which Her Majesty's Government entertain, your Excellency is instructed to seek an audience of the Sultan, and to explain to His Highness, in the most forcible terms, the feelings of the British Government, and the consequences, so injurious to Turkey, which a disregard for those feelings will involve. Her Majesty's Government are so anxious for the continuance of a good understanding with Turkey, and that the Porte should entitle itself to their good offices in the hour of need, that they wish to leave no

expedient untried before they shall be compelled to admit the conviction that all their interest and friendship is misplaced, and that nothing remains for them but to look forward to, if not promote the arrival of, the day when the force of circumstances shall bring about a change which they will have vainly hoped to procure from the prudence and humanity of the Porte itself.

Your Excellency will seek an interview with the Reis Effendi, and, having read to him this despatch, leave a copy of it, with an accurate translation in his hands.

I am, &c.,

(Signed) ABERDEEN.

No. 16.

The Earl of Aberdeen to Sir Stratford Canning.

Sir, Foreign Office, January 16, 1844.

With reference to my other despatch of this day upon the subject of the execution of the Greek near Brussa as an apostate from Islamism, I inclose, for your Excellency's information, an extract of so much of a despatch from M. Guizot to Count Ste. Aulaire as relates to this matter, which Count Ste. Aulaire communicated to me a few days ago.

Your Excellency will perceive from this paper that M. Guizot anticipates that Her Majesty's Government will be disposed to invite the co-operation

of the other Great Powers with the view of making a simultaneous appeal to the Porte on that subject. But although Her Majesty's Government would certainly be glad to see the other Powers of Europe declaring their abhorrence of so revolting a system as that against which your Excellency and your French colleague will be instructed to protest, they consider it, nevertheless, unnecessary formally to solicit their co-operation in a matter in which they all may be supposed to take a common interest, and to be prepared to act without previous concert with each other.

I have however directed Her Majesty's Ambassador at Paris to communicate to M. Guizot a copy of my other despatch of this day; and I should wish your Excellency to concert with M. de Bourqueney as to the manner in which the instructions which I have addressed to your Excellency and those which M. de Bourqueney will receive from his Court on this matter, and which I conclude will closely correspond with those addressed to yourself, shall be carried into execution so as to produce a salutary impression on the Porte.

A copy of my former instruction will be transmitted to Her Majesty's Ambassador at St. Petersburg for communication to the Russian Government; but Lord Stuart de Rothsay will not be instructed, for the reason stated in this despatch, to invite the Russian Government to make a similar representation to the Porte.

I inclose a copy of my despatch to Lord Stuart de Rothsay. A corresponding despatch will be addressed to Sir Robert Gordon and to Lord Westmorland.

I am, &c.,

(Signed) ABERDEEN.

No. 17.

The Earl of Aberdeen to Lord Cowley.

My Lord, *Foreign Office, January 16, 1844.*

I inclose, for your Excellency's information, a copy of a despatch from M. Guizot which has been placed in my hands by the Count de Ste. Aulaire, expressive of the just indignation of the French Government on receiving the tidings that, notwithstanding the representations which were made to the Porte by the Five Powers on the occasion of the execution of the Armenian at Constantinople in September last, a Greek has now been put to death near Brussa for returning to Christianity after having embraced Islamism. This event had been already made known to Her Majesty's Government by a despatch from Sir Stratford Canning of which I herewith transmit a copy.

The Government of the Queen share entirely the feelings of indignation and disgust which the French Government evince on this occasion; and I have consequently instructed Her Majesty's Ambassador at the Porte to make a fresh and more energetic representation than before to the Turkish Government, in condemnation of this repeated act of barbarity.

I inclose a copy of this instruction to Sir Stratford Canning, and also of a further one of the same date, in which I direct his Excellency to concert with the Baron de Bourqueney in carrying that instruction into effect.

Your Excellency will communicate these instructions to M. Guizot.

I am, &c.,

(Signed) ABERDEEN.

No. 18.

The Earl of Aberdeen to Lord Cowley.

My Lord, *Foreign Office, January 16, 1844.*

With reference to my other despatch of this day, inclosing, for communication to M. Guizot, a copy of an instruction which I have addressed to Sir Stratford Canning respecting the execution of a Greek near Brussa who had apostatized from Islamism, I have to state to your Excellency that, in the event of your making the communication to M. Guizot in sufficient time to enable him to send his instructions to the French Minister at Constantinople by the steam-vessel which leaves Marseilles on the 21st of this month, the post for which is made up in Paris on the evening of the 18th, I should wish your Excellency to acquaint Sir Stratford Canning by that opportunity with what may have passed between you and M. Guizot.

The despatch will be sent this evening by post through France so as to go on by the Marseilles steam-vessel of the 21st.

I am, &c.,

(Signed) ABERDEEN.

No. 19.

The Earl of Aberdeen to Lord Stuart de Rothsay.*

My Lord, *Foreign Office, January 16, 1844.*

I inclose for your Excellency's information, a copy of a despatch from Sir Stratford Canning reporting that a Greek has been executed near Brussa as an apostate from Islamism; and a copy of an instruction which I have in consequence addressed to that Ambassador. Your Excellency will communicate this instruction to Count Nesselrode for the information of the Russian Government; but although Her Majesty's Government would doubtless see with pleasure that the other Powers of Europe should declare their abhorrence of so revolting a system as that which the Porte has twice acted upon within the last few months, they do not think it necessary formally to solicit their co-operation in a matter in which they all may be supposed to take a common interest, and to be prepared to act without previous concert with each other.

Your Excellency will therefore merely put Count Nesselrode in possession of the instructions given to Sir Stratford Canning, and leave to the Russian Government to determine for itself whether it shall instruct M. de Titow to the same effect.

I am, &c.,

* A similar despatch was addressed on the 20th January to Sir Robert Gordon and the Earl of Westmorland.

(Signed) ABERDEEN.

No. 20.

Lord Cowley to the Earl of Aberdeen.—(Received January 22.)

My Lord, *Paris, January 19, 1844.*

With reference to your Lordship's despatches of the 16th instant on the subject of the execution of a Greek for returning to Christianity after having embraced Islamism, I have the honour to report that I had yesterday evening an interview with M. Guizot, when I communicated to him the contents of those despatches, and also of your Lordship's instructions to Sir Stratford Canning in consequence of the aforesaid transaction; and I have now the honour to inclose a copy of the despatch which, conformably to your Lordship's instructions, I have addressed to Sir Stratford Canning informing him of what passed upon this subject between M. Guizot and me.

My despatch was forwarded last night to Her Majesty's Ambassador at Constantinople, and will reach Marseilles in time to go by the steam-vessel which sails from that port on the 21st.

I have, &c.,

(Signed) COWLEY.

Inclosure in No. 20.

Lord Cowley to Sir Stratford Canning.

Sir, *Paris, January 18, 1844.*

I have received instructions from Lord Aberdeen to communicate to the French Minister for Foreign Affairs your Excellency's despatches to his Lordship respecting the execution of a Greek near Brussa who had apostatized from Islamism, as also his instructions to your Excellency, under date the 16th instant, in consequence of that transaction. I am also

desired to take the earliest opportunity of acquainting you with what may have passed between M. Guizot and me after this communication.

I had this evening a conference with the Minister for Foreign Affairs, when I communicated to him the contents of your despatches upon this subject, and also Lord Aberdeen's instructions to you of the 16th instant, and I am happy to be enabled to state that M. Guizot expressed his entire approbation of those instructions.

He also assured me that he had signified to M. de Bourqueney, in terms not less strong than those used by Lord Aberdeen in his instructions to you, the indignation and disgust of the French Government at this transaction, affording as it did a painful testimony of the total disregard of the Porte to the remonstrances of the Allies upon a previous act of a similar kind.

The Minister for Foreign Affairs then assured me that he had directed M. de Bourqueney to consult with your Excellency as to the best manner of carrying into effect the instructions of the two Governments. The Representatives of France at St. Petersburg, Vienna, and Berlin, have likewise been directed to bring the subject under the consideration of those Courts; but M. Guizot inclines to the opinion that a separate, rather than joint, representation to the Turkish Government would be advisable. He trusts, however, that the British and French Plenipotentiaries will act in concert upon this occasion, as they have done successfully in every other transaction at Constantinople in which the Allies have taken any interest.

I have, &c.,

(Signed) COWLEY.

No. 21.

The Earl of Westmorland to the Earl of Aberdeen.—(Received January 30.)

My Lord, *Berlin, January 24, 1844.*

In compliance with the directions contained in your Lordship's despatch of the 20th instant, I have communicated to Baron Bülow your instructions to Sir Stratford Canning relative to the late execution of a Greek at Brussa. Baron Bülow gave me an instruction to read addressed to M. de Le Coq, which was dated only two days later than your Lordship's, and which expressed in strong terms his reprobation of the conduct of the Turkish Government upon this occasion. Baron Bülow felt the greatest satisfaction at the statements made by your Lordship, and determined to write again to M. Le Coq directing him to act in accordance with them. He hopes that by conduct and language so energetic as that adopted by your Lordship an impression may be made upon the Turkish Government, and an end be put to the barbarous cruelties of which it has of late been guilty.

I have, &c.,

(Signed) WESTMORLAND.

No. 22.

Sir Robert Gordon to the Earl of Aberdeen.—(Received February 24.)

(Extract.) *Vienna, February 16, 1844.*

In compliance with your Lordship's instructions, I have communicated to Prince Metternich, for the information of the Austrian Government, your despatch to Sir Stratford Canning relating to the execution of the Greek renegade by the Turkish authorities at Brussa on the ground of his apostacy from Islamism.

Whilst I stated to his Highness that my Government did not think it necessary formally to solicit the co-operation of the Internuncio in a matter which could only be viewed by every Government in Europe with the greatest abhorrence, I have been anxious to ascertain in how far the instructions which are forwarded from hence would be made to coincide with your Lordship's; and I have now to state that, although agreeing in the principle upon which have been founded the remonstrances of Her Majesty's Government, and seeking to arrive at the same result, the Austrian Minister has nevertheless a decided objection to the wording of your Lordship's instructions, and the peremptory terms in which it is endeavoured by them to enforce the Sultan's compliance.

No. 23.

Lord Stuart de Rothsay to the Earl of Aberdeen.—(Received February 24.)

(Extract.) *St. Petersburg, February 6, 1844.*

In obedience to the orders contained in your Lordship's despatch of the 16th January, I have communicated to Count Nesselrode a copy of your instructions to Sir Stratford Canning upon the subject of a Greek who had been executed near Brussa as an apostate from Islamism.

I did so without alluding to the wish of Her Majesty's Government that the Russian Minister at Constantinople might be furnished with instructions on the subject. The Vice-Chancellor, nevertheless, said that he should consider attentively the communication I had made, and see how far it might be useful to adopt a similar course, adding, that although he quite participated in the feelings which actuated Her Majesty's Government, he thought that other means might be tried which would be more efficacious in attaining our common object. He afterwards remarked that through the instrumentality of some of the Russian Consular Agents Pashas had not unfrequently been persuaded, in an unofficial manner, to facilitate the removal from their Government of Greeks and others who had rendered themselves liable to capital punishment for apostacy; and he gave me to understand that he was of opinion that greater security to Christians would be obtained by the exercise of the individual influence of foreign agents, than by seeking an alteration in the fundamental laws of the Turkish Empire, such as appeared to be the object of Her Majesty's Government.

Count Nesselrode appears disposed to instruct M. Titow to give his general support to Her Majesty's Ambassador.

Sir Stratford Canning to the Earl of Aberdeen.—(Received March 8.)

(Extract.) *Constantinople, February 10, 1844.*

On the 5th instant I received your Lordship's instructions of the 16th ultimo, relating to the execution of a Greek near Brussa for relapsing from Islamism, and directing me to require of the Porte an unequivocal renunciation of the principle involved in that barbarous act. I received at the same time, from Her Majesty's Ambassador at Paris a despatch informing me that he had communicated those instructions to M. Guizot, and was authorized by him to express that Minister's approbation of their contents, and his intention of ordering M. de Bourqueney to concur with me for the attainment of the object to which they were directed.

I proceeded at once to execute the commands of Her Majesty's Government. To the French Minister I read your Lordship's first instruction, and also Lord Cowley's despatch. He returned my confidence by putting me in possession of M. Guizot's instructions to him of the 13th ultimo, and by expressing his readiness to act in concert with me for the accomplishment of our common purpose. To Rifaat Pasha I communicated a copy, together with an exact translation, of your Lordship's first instruction. I waited upon his Excellency by appointment for this object on the 9th instant, having apprized the Russian, Austrian, and Prussian Ministers of my intention the day before.

The Ottoman Minister for Foreign Affairs read, in my presence, the whole of your Lordship's instruction translated into Turkish. Having finished it, he rose from his seat rather abruptly, without saying a word, and left the room for a few minutes. On his return, he told me that the subject was too important for him to give me an answer without referring to the Council; but, if I were inclined to listen, he would at once impart to me such observations as occurred to his mind. I assured him that I was willing to

receive with becoming consideration whatever he thought proper to state; and he then proceeded to draw a strong line of distinction between custom and divine law, intimating that a practice derived from the former source might be abandoned to meet the wishes of Europe, or even of Great Britain alone, but that a law, prescribed by God himself, was not to be set aside by any human power; and that the Sultan in attempting it might be exposed to a heavy, perhaps even to a dangerous, responsibility. He sought to learn from me whether your Lordship had been fully aware of this view of the case in writing the instruction communicated to him; and it seemed to be his object both to prepare me for an unsatisfactory answer, and to obtain from me some admission which might give him an advantage in shaping the decision of the Council.

I had already, in presenting the instruction, endeavoured to make it clearly understood, that Her Majesty's Government had no object in view but the one so distinctly and powerfully stated therein; and also to show how imperiously the welfare of the Porte itself requires that a practice and principle which operate as moral barriers between Turkey and Christendom, should now be once for all renounced and utterly abandoned. I had every reason to believe that your Lordship had instructed me with a full knowledge of the question in all its bearings and eventual consequences; that the course deliberately adopted by Her Majesty's Government, and announced to the principal Courts of Europe previously united in reprobation of the late impolitic and atrocious executions, was not to be receded from; and that any opening to a compromise on so vital a point could only encourage resistance and endanger the most important interests. I, therefore, rested entirely on the terms of your Lordship's instruction, to which, in truth, there was nothing for me to add.

Although I replied to some of Rifaat Pasha's remarks in a considerate and conciliatory manner, I referred him steadily to your Lordship's instructions,

and left no reason to hope that any evasive or temporizing assurance would be accepted as satisfactory by Her Majesty's Government.

No. 25.

Sir Stratford Canning to the Earl of Aberdeen.—(Received March 8.)

My Lord, *Constantinople, February 12, 1844.*

The interview which I had on the 9th instant with Rifaat Pasha was followed yesterday by one of a similar character between that Minister and the French Representative. M. de Bourqueney obligingly called upon me as soon as he returned from the Pasha's house; and his report of the conference presented in substance a counterpart of what had before passed between his Excellency and myself. He stated that he had given in a paper composed of the strongest passages from M. Guizot's instruction to him of the 13th ultimo; that he had found in Rifaat Pasha's remarks the same indication of resistance on the ground of religion which I had experienced; that in reprobating the executions complained of, and urging the abandonment of so barbarous a law for the future, he had placed himself as nearly as possible on the same ground with me, and that he had carefully avoided any premature discussion of the form of declaration by which the Porte would probably, in the end, attempt to satisfy the remonstrating Governments without a surrender of the principle, or more than a virtual suspension of the practice.

Notwithstanding the want of any instruction from M. Guizot, subsequent to Lord Cowley's communication to that Minister, Baron de Bourqueney found himself sufficiently authorized by the instruction of the 13th to give me his cordial and unqualified support.

Agreeably to M. Guizot's suggestion, as conveyed to me in Lord Cowley's despatch, we have acted separately in form, though concurrently in substance.

I have, &c.,

(Signed) STRATFORD CANNING.

No. 26.

The Earl of Aberdeen to Sir Stratford Canning.

Sir, Foreign Office, March 19, 1844.

I have received your Excellency's despatch of the 10th of February, giving an account of the manner in which you had executed the instruction of the 16th of January, which I addressed to your Excellency on receiving your report of the execution of a Greek near Brussa on the ground of his having renounced his profession of Islamism and returned to Christianity.

I have to acquaint you that Her Majesty's Government entirely approve of your having rested your communication to the Turkish Minister on the terms of my instruction, and of your having steadily referred his Excellency

to that document, while replying in a considerate and conciliatory manner to the remarks which he addressed to you.

Nothing, indeed, can be further from the wish of Her Majesty's Government than that a communication which they have been compelled by a strong sense of duty, and, I may add, by a sincere regard for the welfare of Turkey, to make to the Porte, should be rendered more unpalatable than from its nature it was likely to be, by being conveyed in harsh or dictatorial terms; and they wish, if the question is still under discussion when this despatch reaches your Excellency's hands, that you should constantly bear in mind, that Her Majesty's Government, although they propose to abide by the general tenour of the communication which you have been directed to make to the Porte, have no desire, and would deeply regret, that the acquiescence of the Porte in the demand which they have addressed to it, should be attended with unnecessary pain to the feelings of the Turkish Government.

Her Majesty's Government are persuaded that if the Ministers of the Porte will dispassionately consider what has been desired of them, they will find that, without any real sacrifice of national or religious opinion, they may place themselves in harmony with the wishes and the feelings of the Christian Powers. Her Majesty's Government have not urged, and do not propose to urge, them to abrogate any law, divine or human, but merely to revert to the system which Her Majesty's Government believe to have been for some time past constantly acted upon, and to allow the law to remain practically dormant, and thus silently withdraw from a practice which cannot be enforced without rousing the feelings of Christendom, and rendering it impossible for the Turkish Government to retain the good-will of Christian Powers.

The Ministers of the Porte cannot, on calm reflection, suppose that if they deliberately deprive their Government of the moral or physical support of Christendom, the Turkish Empire can long be preserved from the destruction with which, from numerous causes, it is continually menaced; neither can they believe that, although the sentiments of the various Powers of Europe on the question to which the revival of an obsolete practice has now unfortunately given rise, may be conveyed to the Porte in terms more or less decided, there is any real and essential difference between the expectations and the intentions of all. All must yield to public opinion universally expressed; and the Porte may rest assured that Christian States will, with one accord, refuse to tolerate any longer a practice which, both in the principle on which it rests and the manner in which it is carried into execution, is designed to stigmatize the faith which they profess and cherish.

I am, &c.,

(Signed) ABERDEEN.

No. 27.

Count Nesselrode to M. de Titow.—(Communicated by Baron Brunnow to the Earl of Aberdeen, March 19.)

St. Pétersbourg, le 15/27 Février, 1844.

Je n'ai pas manqué de prendre les ordres de l'Empereur sur le contenu de votre rapport No. 10, du 21 Janvier/2 Février, par lequel vous nous avez

rendu compte de la fâcheuse impression que la nouvelle exécution religieuse qui a eu lieu à Biligik a produite à Constantinople.

Sa Majesté a voué une attention sérieuse aux diverses considérations que vous nous avez exposées pour décider du plus ou moins d'opportunité qu'il y aurait pour les Puissances de l'Europe en général, et pour la Russie en particulier, à protester contre des actes de cruauté incompatibles avec les principes d'humanité dont la Porte devrait se montrer pénétrée à l'égard de ses sujets Chrétiens. D'une part, nous avons reconnu la difficulté, pour ne pas dire l'impossibilité, de découvrir le moyen propre pour paralyser d'une manière définitive les effets de la loi du Coran qui concerne les apostasies; d'autre part, nous ne saurions ne pas élever la voix, lorsqu'il s'agit de l'application de la peine de mort à des individus qui, en embrassant le Christianisme, ou en retournant dans le sein de l'Eglise, invoquent notre protection, et nous imposent le devoir de les soustraire aux rigueurs d'une législation barbare.

Dans un tel état de choses, l'opinion que vous a communiquée M. le Comte de Stürmer, nous a paru celle qui offre le plus de chances de succès. Cette opinion est d'ailleurs conforme aux vues que j'ai été dans le cas de vous développer sur la même matière dans une occasion précédente. Il est donc de l'intention de l'Empereur que vous déclariez à la Porte Ottomane, sous la forme d'un conseil bienveillant, que nous nous attendons positivement à ne plus voir se renouveler des exécutions qui soulèvent contre elle l'indignation de toute la Chrétienté. C'est dans son propre intérêt que nous lui adressons cette demande. La Porte ne doit pas se faire illusion sur les élémens qui fermentent en Turquie. Au lieu de s'aliéner les sentimens des populations Chrétiennes, le Gouvernement Ottoman doit travailler plus que jamais, à se les concilier. Qu'il comprenne enfin la nécessité de laisser tomber en désuétude des dispositions surannées de la loi Mahométane, qui ne peuvent être maintenues qu'au mépris des représentations unanimes de

toutes les Puissances. Tel serait à peu près le langage que vous auriez à tenir, Monsieur, à la Porte Ottomane, de concert avec les autres Représentans, et nous espérons qu'en la rappelant ainsi à la conscience de ses devoirs et de ses intérêts réels, nous l'empêcherons de retomber dans la voie vicieuse qu'elle a suivie en dernier lieu.

Recevez, &c.,

(Signé) NESSELRODE.

(Translation.)

St. Petersburg, 15/27 February, 1844.

I have not failed to take the orders of the Emperor upon the contents of your despatch No. 10, of the 21 January/2 February, in which you have reported the painful impression which the fresh religious execution which has taken place at Biligik has produced at Constantinople.

His Majesty has given his serious attention to the various considerations which you have laid before us in order to determine the greater or less degree of propriety there would be in the principal Powers of Europe generally, and in Russia particularly, protesting against acts of cruelty incompatible with the principles of humanity with which the Porte should show itself animated as regards its Christian subjects. On the one hand, we have perceived the difficulty, not to say the impossibility, of discovering the suitable means of definitively paralyzing the effects of the law of the Koran relating to apostacy; on the other hand, we cannot but raise our voice when it is a question of inflicting the penalty of death upon individuals who, in embracing Christianity, or in returning into the bosom of the Church, appeal to our protection, and impose upon us the duty of withdrawing them from the rigours of a barbarous legislation.

In such a state of things the opinion which M. de Stürmer has communicated to you, has appeared to us to be that which offers the greatest chance of success. This opinion is, moreover, in conformity with the views which I have had occasion to explain to you on the same subject on a former occasion. It is then the Emperor's intention that you should declare to the Ottoman Porte, in the form of friendly counsel, that we positively expect no longer to witness executions which array against it the indignation of all Christendom. It is with a view to its own interest that we address to it this demand. The Porte must not delude itself with regard to the elements now in a state of fermentation in Turkey. Instead of alienating from itself the feelings of the Christian population, the Ottoman Government ought more than ever to labour to conciliate them to itself. Let it comprehend, in fine, the necessity of allowing to become obsolete antiquated enactments of the Mahomedan law, which cannot be upheld but in disregard of the unanimous representations of all the Powers. Such should be the purport of the language which, Sir, you should hold to the Ottoman Porte, in concert with the other Representatives; and we trust that in thus recalling it to a sense of its duties and real interests, we shall prevent it from again falling into the vicious system which it has recently followed.

Receive, &c.,

(Signed) NESSELRODE.

No. 28.

Lord Cowley to the Earl of Aberdeen.—(Received March 21.)

(Extract.) *Paris, March 18, 1844.*

With reference to the representations made to the Ottoman Government by the French and English Representatives at Constantinople on the subject of the execution of a Greek near Brussa, as reported in Sir Stratford Canning's despatches of the 10th and 12th February, I have the honour to state that M. Guizot has communicated to me the substance of what passed at a conference which he has had within these few days with Reshid Pasha upon that subject.

The Pasha said that he was instructed to express in strong terms the concern of the Sultan at this interference of the Allied Sovereigns (of Great Britain and France in particular) in the internal concerns of his empire; that a compliance with these demands might be attended with very serious consequences to himself and his Government; and that he (the Pasha) was instructed to express the fervent hope of his Master, that they would not be persisted in.

M. Guizot replied that the French and British Governments never could desist from expressing their abhorrence of such atrocious acts of cruelty as had been perpetrated upon the late occasion, and which had given rise to a renewal of the requisition that the practice should be entirely abandoned, and that they confidently expected that their representations would have the desired effect upon the Ottoman Government.

No. 29.

The Earl of Aberdeen to Lord Cowley.

(Extract.) *Foreign Office, March 22, 1844.*

I transmit to your Excellency herewith a copy of an instruction which I addressed on the 19th instant to Sir Stratford Canning, in reply to his Excellency's despatch of the 10th of February last relative to the execution of the Greek near Brussa, a copy of which was forwarded to your Excellency on the 15th instant.

You will lose no time in communicating this instruction to M. Guizot and you will at the same time, suggest to him the propriety of instructing the French Minister at the Porte to make it perfectly clear to the Turkish Government, that neither Great Britain nor France demand the abrogation of any law of the Turkish Empire; and that all that we desire is an assurance that the practice which has so justly called forth the reprobation of all Christian countries, shall cease, by the law being suffered to remain, as it had long been, dormant.

No. 30.

Sir Stratford Canning to the Earl of Aberdeen.—(Received March 24.)

(Extract.) *Constantinople, February 29, 1844.*

I applied to Rifaat Pasha on the 24th instant, in concert with the French Minister, for an answer to your Lordship's requisition on the subject of the executions for apostacy from Islamism. My application was made in the form of an instruction to M. Frederick Pisani, and Baron de Bourqueney adopted a similar line of proceeding. Copies of my instruction to M. Pisani

and of his report of Rifaat Pasha's reply, identical with the report of the French interpreter, are inclosed herewith for your Lordship's more complete information.

Several Councils have been held, as well at the Porte as at the Sheik-ul-Islam's residence.

I inclose with this despatch a short report from M. Pisani, which preceded the instruction referred to above.

Inclosure I in No. 30.

Sir Stratford Canning to M. Pisani.

Monsieur, Péra, le 22 Février, 1844.

Le message que vous m'avez transmis avant-hier de la part de son Excellence Rifaat Pacha, laisse tout-à-fait incertaine l'époque où je recevrai une réponse à la communication importante que j'ai eu l'honneur de lui faire le 8 du courant par l'ordre exprès de ma Cour. Il est pourtant à désirer que cette incertitude ne soit pas prolongée hors de mesure. La question dont il s'agit est toute entière dans la dépêche officielle dont la copie se trouve depuis quinze jours entre les mains du Ministre, et j'attends du Gouvernement Ottoman la prompte solution d'une affaire qui touche de trop près ses intérêts, son avenir, et ses rapports avec les Puissances amies, pour que son Excellence soit autorisée à la regarder comme purement du ressort de la religion.

Il me semble, au contraire, que cette question est, à ne pas en douter, essentiellement liée avec les considérations les plus élevées de la politique. J'aime par conséquent à croire que les Ministres de Sa Hautesse ne méconnaîtront pas leur obligation d'en mesurer la portée par les principes de

la raison et les règles de la prudence dont aucun Etat ne pourrait impunément se dispenser. Eviter la responsabilité qui appartient nécessairement à leur position serait-ce en effet autre chose que priver leur Souverain du gage le plus sûr de leur exactitude à en remplir les conditions conformément au but de leur nomination, aux exigences de la conjoncture, et aux inspirations de la sagacité que la Providence leur a accordée?

Je vous invite donc, Monsieur, à vous rendre de nouveau auprès du Ministre des Affaires Etrangères, et à exprimer formellement à son Excellence ma juste attente que le Conseil ne tardera pas à me faire remettre par son canal une réponse catégorique et comme je l'espère, satisfaisante à la demande d'un Gouvernement sincèrement ami de la Porte. Vous lui laisserez une copie de cette instruction, et vous vous entendrez quant au temps de sa présentation avec Monsieur l'Interprète de l'Ambassade Française, qui est muni d'une instruction pareille par son Ministre.

Je suis, &c.,

(Signé) STRATFORD CANNING.

(Translation.)

Sir, Pera, February 22, 1844.

The message which you yesterday conveyed to me from his Excellency Rifaat Pasha leaves altogether uncertain the time at which I shall receive an answer to the important communication which I had the honour to make to him on the 8th instant by the express order of my Court. It is however to be desired that this uncertainty should not indefinitely be prolonged. The question at issue is altogether contained in the official despatch the copy of which has been for the last fortnight in the Minister's hands, and I expect from the Ottoman Government the speedy settlement of a matter which

affects its interests, its future position, and its relations with friendly Powers too nearly for his Excellency to be authorized in considering it merely as a religious question.

On the contrary it appears to me that without doubt this question is essentially connected with the highest political considerations. I am consequently fain to believe that the Ministers of His Highness will not overlook their obligation to estimate the bearing of it by the principles of reason and the rules of prudence which no State can with impunity disregard. To shrink from the responsibility which necessarily attaches to their position, what else would that be than to deprive their Sovereign of the surest pledge of their diligence in discharging the conditions thereof consistently with the object of their appointment, the emergencies of the state of affairs, and the inspirations of the sagacity which Providence has bestowed upon them?

I accordingly request you, Sir, to go again to the Minister for Foreign Affairs, and formally to intimate to his Excellency my just expectation that the Council will not delay to cause to be delivered to me through him a categorical answer, and, as I hope, a satisfactory answer to the demand of a Government sincerely friendly to the Porte. You will leave with him a copy of this instruction, and you will concert as to the time of its delivery with the Interpreter of the French Embassy, who is furnished by his Minister with a similar instruction.

I have, &c.,

(Signed) STRATFORD CANNING.

Inclosure 2 in No. 30.

Answer of Rifaat Pasha to M. Pisani, February 22, 1844.

Aucune nouvelle démarche n'était nécessaire pour nous faire sentir l'importance de cette question, importance dont nous sommes profondément pénétrés. Nous la traitons avec tout le sérieux et tous les soins que sa gravité exige. Oui, ce que vos chefs respectifs disent est vrai; cette question a son côté politique aussi bien que son côté religieux. Il faut en effet que nous nous séparions de la nation, ou bien des Puissances Chrétiennes; ce sont là deux grands maux également à éviter. Le Sultan a ordonné que cette question soit discutée dans un Conseil d'Oulémas qui s'ouvrira Samedi prochain chez le Sheik-ul-Islam, auquel seront appelés le Cazi-Asker et d'autres notabilités parmi les hommes de loi; après quoi, le Conseil des Ministres s'en occupera de nouveau. Ne croyez-pas au reste que nous nous soyons bornés à appeler leur attention purement et simplement sur la question sous le rapport religieux; nous leur avons remis aussi les protocoles des conférences, les dépêches des deux Gouvernemens, et même des extraits des journaux qui ont agité cette question, et nous leur communiquerons également les instructions que vous venez de me remettre, et qui, bien que superflues pour la Porte, peuvent encore ajouter à l'impression produite par les autres pièces qui sont entre leurs mains. Comme nous ne devons pas douter des bonnes intentions des Puissances, nous espérons que MM. les Représentans d'Angleterre et de France, dans leur haute sagesse et avec l'esprit d'équité qui les anime, ne se refuseront pas à prendre en considération les graves difficultés qui existent, et qu'ils se prêteront à amener une solution qui nous sauverait des deux maux que je vous ai signalés. C'est là le but que nous devons nous efforcer d'atteindre.

C'était pour vous informer de la marche de cette affaire que je vous ai prié ce matin de passer chez moi.

(Translation.)

No fresh step was requisite to make us sensible of the importance of this question, with which we are deeply impressed. We are dealing with it with all the seriousness and all the care which its gravity requires. Yes, what your respective chiefs say is true; this question has its political as also its religious side. It is requisite, in fact, that we should separate ourselves from the nation, or otherwise from the Christian Powers; those are two great evils to be equally avoided. The Sultan has commanded that this question shall be discussed in the Council of Oulemas which will be opened next Saturday at the Sheik-ul-Islam's, to which the Cazi-Asker and the other principal persons among the men of the law will be summoned; after which, the Council of Ministers will again apply themselves to it. Do not suppose, however, that we have confined ourselves to directing their attention purely and simply to the question as it regards religion; we have likewise submitted to them the protocols of the conferences, the despatches of the two Governments, and even the extracts of the newspapers which have discussed this question, and we shall likewise communicate to them the instructions which you have just delivered to me, and which, although superfluous as far as the Porte is concerned, may still add to the impression produced by the other documents in their hands. As we must not doubt the good intentions of the Powers, we trust that the Representatives of England and France, in their profound wisdom, and with the spirit of equity by which they are animated, will not refuse to take into consideration the serious difficulties which exist, and that they will lend themselves to bring about a solution which would preserve us from the two evils which I have pointed out to you. That is the object which we must strive to attain.

It was in order to acquaint you with the progress of this matter that I requested you to call upon me this morning.

Inclosure 3 in No. 30.

Answer of Rifaat Pasha to M. Pisani, February 20, 1844.

Nous connaissons toute l'importance de la question dont il s'agit. Mais il faut considérer que cette question n'est ni politique ni administrative, et qu'elle regarde la religion. Il faut donc que nous consultations préalablement les docteurs de la loi, et la mission d'examiner cette affaire leur a été donnée de la part du Conseil; cette affaire reviendra ensuite au Divan.

J'accomplis ma mission, qui est celle de porter exactement à la connaissance des Ministres de la Sublime Porte tout ce que les deux Représentans me disent, et je ne manquerai pas de leur faire savoir la réponse du Conseil. Ainsi, non seulement je ne suis pas à même de répondre aujourd'hui, mais il m'est encore impossible de vous dire avec précision quel jour je pourrais vous la donner. Je ferai savoir au Conseil le message dont vous vous êtes acquitté aujourd'hui.

(Translation.)

We know all the importance of the case in question. But it is necessary to consider that this question is neither one of policy nor of administration, and that it concerns religion. We must therefore first consult the doctors of the law, and the charge of inquiring into this matter has been entrusted to them by the Council; the matter will then come back to the Divan.

I discharge my duty, which is to represent exactly to the Ministers of the Sublime Porte what the two Representatives say to me, and I shall not fail to let the latter know the answer of the Council. For this reason, not only is it not in my power to give you an answer to-day, but it is also impossible for me to say to you precisely on what day I can give it to you. I will let the Council know the message which you have communicated to-day.

No. 31.

Sir Stratford Canning to the Earl of Aberdeen.—(Received March 24.)

(Extract.) *Constantinople, March 3, 1844.*

I have this moment received important information, and I rely so much upon its correctness that I send off an express to overtake the messenger. The Turkish Government has virtually decided on complying with your Lordship's requisition.

Rifaat Pasha has written to propose in rather urgent terms a private interview with me. I have assented to this proposal, repeating at the same time my opinion that no advantage is likely to result from it. The French Minister will be present, and we shall probably meet on the 5th.

In reply to our renewed demand for the Porte's official answer, Rifaat Pasha has pressed for an additional delay of eight or ten days, alleging that the deliberations of the Council are not yet closed.

On the expiration of that term, or shortly afterwards, I trust it will be in my power to forward the official confirmation of what I now submit to your Lordship with confidence.

No. 32.

Lord Cowley to the Earl of Aberdeen.—(Received March 27.)

My Lord, *Paris, March 25, 1844.*

With reference to your Lordship's despatch of the 22nd instant inclosing a copy of your instructions to Sir Stratford Canning under date the 19th instant, I have the honour to state that upon communicating those instructions to the Minister for Foreign Affairs, he assured me that he would without loss of time send instructions of a similar tenour to M. de Bourqueney, although that Minister was already in possession of the sentiments of his Government relative to those barbarous executions; which are, that the Government of France had no intention of requiring of the Ottoman Government that they should abrogate any law, but they expect a satisfactory assurance in writing should be given to the Allies that the practice complained of should cease.

I have, &c.,

(Signed) COWLEY.

No. 33.

Sir Stratford Canning to the Earl of Aberdeen.—(Received March 30.)

My Lord, *Constantinople, March 6, 1844.*

The confidential interview to which I was invited by Rifaat Pasha, took place yesterday, and the French Minister was also present. In order to mark more emphatically the private character of this meeting we trusted entirely to Foad Effendi, who accompanied Rifaat Pasha at my request, for the

interpretation of what passed between us. I am happy to say that although the Pasha repeated all the arguments stated in M. Pisani's report, of which a copy has been already transmitted to your Lordship, nothing occurred to shake my confidence in the information previously conveyed to me and recorded in my preceding despatch. The French Minister participated fully in this impression, and gave me his support in a most frank and effectual manner.

The Pasha's main position was this: if we refuse, we lose the friendship of Europe; if we consent, we hazard the peace of the empire; you come as friends, and therefore we reckon upon your helping us to find some course by which we may satisfy you without injuring ourselves.

In answer we confirmed his persuasion that our intentions were friendly; but we added that our course was prescribed by the instructions; that we could not admit the supposition of our Governments having acted without a full consideration of the consequences; and that although we were not called upon to require an express and formal repeal of the law which they termed religious, we must, at the very least, require an official declaration that effectual measures would be taken to prevent the recurrence of executions for apostacy, and a disclaimer of every idea involving insult to Christianity, or the persecution of its followers, on account of their faith.

This explanation appeared to produce a good effect on the Pasha's mind, and I observed with particular satisfaction, that he admitted that the Mufti had expressed to the Porte a personal opinion, which drew a very desirable distinction between the strict language of the law and the discretion warranted by State necessity.

Upon the whole, my Lord, it was sufficiently apparent that the objections entertained by the Porte are far from insuperable; that much of the remaining difficulty arises from the reference unwisely made to the

Ulemah; and that, with every wish to escape from our demand, and every determination to give us the least acceptable degree of satisfaction, there is no intention ultimately to refuse, although it is possible that we shall not be able to obtain as complete a declaration as we could desire without a reference to London and Paris.

I have, &c.,

(Signed) STRATFORD CANNING.

No. 34.

Sir Stratford Canning to the Earl of Aberdeen.—(Received April 4.)

(Extract.) *Constantinople, March 14, 1844.*

Since I had last the honour of addressing your Lordship the Turkish Ministers have been almost exclusively occupied with the great question which formed the subject matter of your Lordship's instruction of 16th January. The deferred settlement of this question is, indeed, a source of much inconvenience to all who have business to transact with the Porte. The affairs of Her Majesty's Embassy, and those of the French and even of the Austrian Legation, are almost suspended. I have, therefore, been doubly anxious to obtain the Porte's definitive answer; but notwithstanding every exertion consistent with the consideration due to an independent and friendly Government, I have only this moment succeeded in obtaining it; and I lament to say that it is so unsatisfactory as to induce me to reject it without a moment's hesitation.

In this decision the French Minister concurs with equal promptitude and completeness. I inclose herewith the terms of the answer, as reported to us by our respective interpreters. It was given verbally, but with some additional authority derived from the presence of the Grand Vizier and the President of the Council.

The 16th instant had been previously fixed for the delivery of the Porte's answer, and we were content to wait. This morning, however, I received through several channels a confirmation of intelligence which had reached me imperfectly the evening before, to the effect that an unfavourable resolution had already been adopted by the Council, and that the Turkish Ministers deferred the communication of it for the sole purpose of engaging the Sultan's word, and frustrating any eventual appeal to His Majesty. At the same time, therefore, that, in concurrence with the French Minister, I directed M. Pisani to demand an audience, if an immediate and satisfactory answer were not delivered at the Porte, I sent to the Grand Marshal of the Palace and called upon him to apprise the Sultan forthwith of my intention to seek a formal audience of His Majesty, and to entreat that the Royal decision might be withheld until I had an opportunity of executing your Lordship's instruction in that respect.

Meanwhile in spite of adverse appearances, I still retain the opinion expressed in a former part of my correspondence. The Porte, I am satisfied, is prepared to give way in the end, though with much reluctance. Nothing whatever has occurred to warrant the alarming rumours of popular excitement and insurrection diligently circulated, and even countenanced by Rifaat Pasha, some days ago. If my information be correct, there is reason, on the contrary, to believe that not only the Mussulman inhabitants of the capital are sufficiently indifferent to the question at issue, but that many of the upper classes, some of the most distinguished Turkish statesmen, and a few even of the Ulemah are favourable to our view of the subject.

Inclosure in No. 34.

Answer of Rifaat Pasha to M. Frederic Pisani, March 14, 1844.

La réponse de son Excellence Rifaat Pacha, dite verbalement et officiellement, se trouve dans une pièce qui nous a été présentée. Cette pièce était un extrait d'une dépêche à Aali Effendi et à Réchid Pacha. Nous avons refusé de la prendre parcequ'elle n'est pas satisfaisante. Elle est conçue ainsi: "Comme la loi ne permet nullement de changer les dispositions à l'égard de la punition des apostats, la Sublime Porte prendra des mesures efficaces, les mesures possibles, pour que l'exécution des Chrétiens qui, devenus Musulmans, retournent au Christianisme, n'ait pas lieu."

(Translation.)

The answer of his Excellency Rifaat Pasha, verbally and officially pronounced, is contained in a document which was presented to us. This document was an extract from a despatch to Aali Effendi and to Reshid Pasha. We refused to take it, because it is not satisfactory. It is couched in these terms: "As the law does not admit of any change being made in the enactments regarding the punishment of apostates, the Sublime Porte will take efficacious measures, the measures which are possible, in order that the execution of Christians who, having become Mussulmans, return to Christianity, shall not take place."

No. 35.

The Earl of Aberdeen to Sir Stratford Canning.

(Extract.) *Foreign Office, April 6, 1844.*

The latest account which I have received from your Excellency of your proceedings with regard to the question pending with the Porte, arising out of the execution of the Greek near Brussa on the charge of apostacy from Islamism, is contained in your despatch of the 14th of March. From that despatch it appears that, in conjunction with your French colleague, you had rejected as unsatisfactory the communication made to your dragomans on that day by the Ministers of the Porte, and that you were taking measures to secure an audience of the Sultan, in the event of your failing to obtain from the Porte without further delay, a more satisfactory reply.

On the statements in that despatch I have to acquaint your Excellency that Her Majesty's Government concur with you in considering that the communication made to you through your dragoman on the 14th of March, was not of that absolute and unequivocal character which you were instructed in my despatch of the 16th of January to require from the Porte; and that you consequently acted rightly in refusing to receive it, and in taking steps to obtain either a more satisfactory communication from the Ministers of the Porte, or admission to the presence of the Sultan for the purpose of addressing to His Highness in person that appeal which you were directed in case of necessity to make to him.

With regard, however, to the nature of the communication which Her Majesty's Government would consider satisfactory, I have to state to your Excellency that Her Majesty's Government are content to abide by the terms which, it appears from your despatch of the 6th of March, were suggested to Rifaat Pasha on the preceding day by your Excellency and M. de Bourqueney, namely, that the Porte should make "an official declaration that effectual measures would be taken to prevent the recurrence of executions

for apostacy," or, as the proposition has been reported by M. de Bourqueney to his Government, "that the Porte will take effectual measures to prevent the renewal of executions similar to those which have recently taken place at Constantinople and Biligik."

With such a declaration, officially made, Her Majesty's Government would be perfectly satisfied, even without the additional clause reported by your Excellency, which appears to them to be unnecessary.

I need scarcely inform your Excellency that Her Majesty's Government look with much anxiety to an early solution of this question. They are sensible of the many inconveniences which the continued agitation of it may involve, although it is with no small satisfaction that they perceive from your Excellency's despatch that there is no present appearance of the difficulties necessarily attached to the question being increased by any insurrectionary or fanatical movement on the part of the Mussulman inhabitants of the Capital.

I have not yet received from the Turkish Ambassador in this country any communication of the despatch from which the answer given to your Excellency, through M. Pisani, appears to be an extract.

It is greatly to be desired that the Porte should act with promptitude. Much of the embarrassment to which the agitation of this question has given rise, may be traced to the attempt of the Porte to invest it exclusively with a religious character.

Sir Stratford Canning to the Earl of Aberdeen.—(Received April 10.)

(Extract.) *Constantinople, March 23, 1844.*

I have the honour and satisfaction to inform your Lordship that the question of religious executions is happily and, to all appearance, conclusively settled. The concession has been obtained with great difficulty; and, even to the last moment, it required the firmness of resolution inspired by your Lordship's instruction to overcome the obstacles which were raised against us, and to keep the Turkish Ministers steady to their professions. I felt it to be my duty to accept nothing short of your Lordship's requisition in its full extent. But this obligation did not preclude me either from adopting such means of success as were best calculated to hasten a favourable result, or from accepting that result in a conciliatory though effective shape. By availing myself of an overture to communicate directly with the Sultan, I succeeded in obtaining all that was necessary, and in receiving His Highness' acknowledgments for the consideration I had shewn to his wishes.

These transactions have so little interest now, that it would be a waste of your Lordship's time to enter upon a narration of them. It may suffice for me to state that, after several unacceptable propositions, the Porte's definitive reply was communicated to me and to the French Minister in suitable terms, and also in writing, which had been long refused; that to leave no doubt of what I understand to be the meaning of the Porte, I sent in an acknowledgment, of which a copy is herewith inclosed, together with a translated copy of the Porte's declaration; and that to-day, at my audience of the Sultan, His Highness not only confirmed what the Porte had declared, but added, in frank and explicit language, the assurances which I had previously required as to the general good treatment of the Christians throughout his dominions. He, in fact, gave me his royal word that,

henceforward, neither should Christianity be insulted in his dominions, nor should Christians be in any way persecuted for their religion. Important as it was to obtain this assurance from the lips of the Sovereign himself, I should have thought it right to demand an audience for the mere purpose of removing false impressions from His Highness' mind respecting the motives and objects of Her Majesty's Government. In this respect, also, I had every reason to be satisfied. The Sultan expressed the strongest reliance on the friendly intentions of Great Britain; he fully appreciated the motives which had actuated her on the present occasion; he acknowledged more than once the signal and frequent services rendered to his empire by British arms and counsels; he declared that the great concession which he had now confirmed, though entirely consonant with his own feelings, had been made to his sense of obligation towards the British Government; he called upon me to convey his thanks to Her Majesty for the good treatment experienced by the millions of Mussulman subjects living under British sway in India, and his anxious desire that the engagements which he had taken to protect from violent and undue interference the Christians established in his empire, should be appreciated by Her Majesty's Government, and prove a source of increased good-will between the two nations, and an occasion of eliciting fresh proofs of friendly interest on the part of Great Britain towards his dominions.

What passed at this audience is the more important and binding, as it was one of a formal character, applied for on public grounds; and, to give it still greater value, the Sultan, after I had retired from his presence, called back the dragoman of the Porte, and desired him to assure me that what he had said in public proceeded from his real conviction, and was, in fact, the sincere expression of his personal sentiments.

Inclosure 1 in No. 36.

Official Declaration of the Sublime Porte, relinquishing the practice of Executions for Apostacy.

(Translation.)

It is the special and constant intention of His Highness the Sultan that his cordial relations with the High Powers be preserved, and that a perfect reciprocal friendship be maintained, and increased.

The Sublime Porte engages to take effectual measures to prevent henceforward the execution and putting to death of the Christian who is an apostate.

March 21, 1844.

Inclosure 2 in No. 36.

Acknowledgment of the Sublime Porte's Official Declaration respecting Executions for Apostacy. March 22, 1844.

The official declaration communicated by his Excellency the Minister for Foreign Affairs shall be transmitted to the British Government, who will understand with satisfaction that the Sublime Porte, in taking effectual measures to prevent henceforward the execution and putting to death of any Christian, an apostate from Islamism, relinquishes for ever a principle inconsistent with its friendly professions; and the further assurances to be given at the Ambassador's audience of the Sultan, in the sense of the instruction presented in copy to the Porte on the 9th ultimo, will fully satisfy the British Government that Christianity is not to be insulted in His Highness' empire, nor any one professing it to be treated as a criminal, or persecuted on that account.

(Signed) STRATFORD CANNING.

No. 37.

Earl of Westmorland to the Earl of Aberdeen.—(Received April 12.)

My Lord, *Berlin, April 7, 1844.*

I received a private letter From Sir Stratford Canning, dated Constantinople, March 23, announcing the termination of his negotiation with the Turkish Government as to its future conduct in the cases of Christians who have renounced the Mahomedan religion, and bearing witness to the cordial manner in which M. de Le Coq, the Prussian Minister, under Baron Bülow's instruction, had assisted his exertions.

I thought it my duty to communicate this feeling to Baron Bülow, who has expressed himself obliged by the expressions of Sir Stratford Canning, and most happy to have contributed to so good a work as the attainment of a written pledge from the Turkish Government that it will take effectual means to prevent henceforward the execution of the Christian who is an apostate.

I have, &c.,

(Signed) WESTMORLAND.

No. 38.

Lord Cowley to the Earl of Aberdeen.—(Received April 17.)

My Lord, *Paris*, April 15, 1844.

At the desire of Her Majesty's Ambassador at Constantinople I have the honour to forward to your Lordship copies of a despatch and of its inclosures which his Excellency has addressed to me in consequence of the acquiescence of the Porte in the representations of Great Britain and France on the subject of the execution of apostates from Islamism.

M. Guizot read to me yesterday Baron de Bourqueney's report announcing the successful termination of these negotiations, and expressing his entire satisfaction at the assurances afforded him by the Sultan, at the audience to which His Majesty has been graciously pleased to invite him, of his determination to adhere strictly to the engagements he had entered into with the two Powers.

I have, &c.,

(Signed) COWLEY.

Inclosure 1 in No. 38.

Sir Stratford Canning to Lord Cowley.

My Lord, *Constantinople*, March 27, 1844.

As the question relating to the execution of apostates from Islamism is now successfully terminated, it will be satisfactory for your Lordship to learn that the entire approbation expressed by M. Guizot of the instructions addressed to me on the 16th of January by the Earl of Aberdeen, procured

me the active support of Baron de Bourqueney throughout the late negotiations with the Porte, and that by acting separately, according to M. Guizot's suggestion, I was enabled to give the fullest effect to my instructions, marked and decisive as they were, without losing any part of the advantage derived from the French Minister's concurrence.

Together we rejected the unsatisfactory answer at first and more than once proposed by the Porte; together we accepted what appeared to offer a sufficient guarantee for the accomplishment of our common object.

The terms in which the final declaration of the Porte was conveyed to us on the 21st instant, are recorded in the accompanying paper translated exactly from the Turkish original.

I thought it advisable to acknowledge this communication, and as I was entitled to expect some additional assurances from the Sultan at the public audience which I had demanded of His Majesty according to my instructions, I avoided embarrassing the French Minister by proposing to him to take part in a step which related exclusively to my position. A copy of this acknowledgment is inclosed herewith; and in order to give your Lordship a complete view of the transaction in its full extent, I add the very terms, as translated to me, in which the Sultan was pleased to confirm and to enlarge the engagement of his Government.

I may venture to add that His Majesty's assurances were given in the most gracious form, accompanied with an expression of thanks for the liberal manner in which the millions of Mahomedan subjects in India are treated by the British authorities, and followed by a message, after I had left his presence, to the effect that the sentiments which he had declared to me were not only those of the Monarch but of the individual.

In short, my Lord, I am sanguine enough to hope that Her Majesty's Government have laid the foundation of a more real improvement in the temper and policy of this State than was to have been previously expected; and it is a subject of just congratulation that the counsels of two great nations have united successfully for the attainment of so beneficent an object.

The invitation to Baron de Bourqueney to wait upon the Sultan the day after my audience, and to receive, for the information of his Court, a repetition of the assurances addressed to me, affords another proof of His Majesty's sincerity.

I have, &c.,

(Signed) STRATFORD CANNING.

P.S.—I request that a copy of this despatch and its inclosures may be forwarded immediately to Her Majesty's Government.

S. C.

Inclosure 2 in No. 38.

Official Declaration of the Sublime Porte, relinquishing the practice of Executions for Apostacy from Islamism.

[See Inclosure 1 in No. 36.]

Inclosure 3 in No. 38.

Acknowledgment of the Sublime Porte's Official Declaration respecting Executions for Apostacy.

[See Inclosure 2 in No. 36.]

Inclosure 4 in No. 38.

Declaration of His Highness the Sultan to Sir Stratford Canning at his Audience on the 23rd of March, 1844.

"Henceforward neither shall Christianity be insulted in my dominions, nor shall Christians be in any way persecuted for their religion."

No. 39.

The Earl of Aberdeen to Sir Stratford Canning.

(Extract.) *Foreign Office, April 19, 1844.*

I received on the 10th of this month your Excellency's despatch of the 23rd of March conveying the gratifying intelligence that the Porte had given way on the question of the execution of apostates from Islamism. The concession made by the Porte in this respect, entirely consistent as it is with the wishes and intentions of Her Majesty's Government, as expressed in my several instructions of the 16th of January, 19th of March, and 6th of April, has given them the greatest satisfaction; and I have been happy to receive the Queen's commands to signify to your Excellency Her Majesty's gracious approbation of the manner in which you have executed your instructions, and brought to a successful close a question of which the importance cannot be too highly rated.

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